

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Railway and Canal Traffic Act, 1888	51 & 52 Vict. c. 25.
Land Drainage Act, 1930	20 & 21 Geo. 5. c. 44.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 49.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Town and Country Planning Act, 1944	7 & 8 Geo. 6. c. 47.
Water Act, 1945	8 & 9 Geo. 6. c. 42.
Housing (Financial and Miscellaneous Provisions) Act, 1946	9 & 10 Geo. 6. c. 48.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
River Boards Act, 1948	11 & 12 Geo. 6. c. 32.

CHAPTER 55*Magistrates' Courts Act, 1952*

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An Act to consolidate certain enactments relating to the jurisdiction of, and the practice and procedure before, magistrates' courts and the functions of justices' clerks, and to matters connected therewith, with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949. [1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

CRIMINAL JURISDICTION AND PROCEDURE

Jurisdiction to issue process and deal with charges

1.—(1) Upon an information being laid before a justice of the peace for any county or borough that any person has, or is suspected of having, committed an offence, the justice may, in any of the events mentioned in subsection (2) of this section—

Issue of summons to accused or warrant for his arrest.

- (a) issue a summons directed to that person requiring him to appear before a magistrates' court for the county or borough to answer to the information ; or
- (b) issue a warrant to arrest that person and bring him before a magistrates' court for the county or borough or such magistrates' court as is provided in subsection (2) of this section :

Provided that the justice shall not issue a warrant unless the information is in writing and substantiated on oath.

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—cont.

(2) A justice of the peace for a county or borough may issue a summons or warrant under this section—

- (a) if the offence was committed or is suspected to have been committed within the county or borough ; or
- (b) if it appears to the justice necessary or expedient, with a view to the better administration of justice, that the person charged should be tried jointly with, or in the same place as, some other person who is charged with an offence, and who is in custody, or is being or is to be proceeded against, within the county or borough ; or
- (c) if the person charged resides or is, or is believed to reside or be, within the county or borough ; or
- (d) if under any enactment a magistrates' court for the county or borough has jurisdiction to try the offence:

Provided that where the offence charged is not an indictable offence—

- (i) a summons shall not be issued by virtue only of paragraph (c) of this subsection, and
- (ii) any warrant issued by virtue only of that paragraph shall require the person charged to be brought before a magistrates' court having jurisdiction to try the offence.

(3) Where the offence charged is an indictable offence, a warrant under this section may be issued at any time notwithstanding that a summons has previously been issued.

(4) A warrant may be issued by virtue of paragraph (c) of subsection (2) of this section notwithstanding that the offence was committed outside England and Wales if an indictment for the offence may legally be preferred in England or Wales.

(5) A justice of the peace may issue a summons or warrant under this section upon an information being laid before him notwithstanding any enactment requiring the information to be laid before two or more justices.

**Jurisdiction to
deal with
charges.**

2.—(1) A magistrates' court for a county or borough shall have jurisdiction to try all summary offences committed within the county or borough.

(2) Where a person charged with a summary offence appears or is brought before a magistrates' court in answer to a summons issued under paragraph (b) of subsection (2) of the preceding section, or under a warrant issued under that paragraph, the court shall have jurisdiction to try the offence.

(3) A magistrates' court for a county or borough shall have jurisdiction as examining justices over any offence committed

by a person who appears or is brought before the court, whether or not the offence was committed within the county or borough.

PART I
—*cont.*

(4) A magistrates' court shall, in the exercise of its powers under subsection (3) of section eighteen, or under section nineteen, twenty or twenty-one of this Act, have jurisdiction to try summarily an indictable offence in any case in which under the last preceding subsection it would have jurisdiction as examining justices.

(5) Nothing in this section shall affect any jurisdiction over offences conferred on a magistrates' court by any enactment not contained in this Act.

3.—(1) Where an offence has been committed on the boundary between two or more local jurisdictions, or within five hundred yards of such a boundary, or in any harbour, river, arm of the sea or other water lying between two or more local jurisdictions, the offence may be treated for the purposes of the preceding provisions of this Act as having been committed in any of those jurisdictions.

Offences committed on boundaries or on journeys. Offences begun in one jurisdiction and completed in another.

(2) An offence begun in one local jurisdiction and completed in another may be treated for the purposes of the preceding provisions of this Act as having been wholly committed in either.

(3) Where an offence has been committed on any person, or on or in respect of any property, in or on a vehicle or vessel engaged on any journey or voyage through two or more local jurisdictions, the offence may be treated for the purposes of the preceding provisions of this Act as having been committed in any of those jurisdictions; and where the side or any part of a road or any water along which the vehicle or vessel passed in the course of the journey or voyage forms the boundary between two or more jurisdictions, the offence may be treated for the purposes of the preceding provisions of this Act as having been committed in any of those local jurisdictions.

(4) In this section the expression "local jurisdiction" means a county or a borough having a separate commission of the peace.

Proceedings preliminary to trial on indictment

4.—(1) The functions of examining justices may be discharged by a single justice.

General nature of proceedings before examining justices.

(2) Examining justices shall not be obliged to sit in open court.

(3) Evidence given before examining justices shall be given in the presence of the accused; and the defence shall be at liberty to put questions to any witness at the inquiry.

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Binding over
prosecutor
and witnesses
to attend trial.

5.—(1) A magistrates' court acting as examining justices shall bind each witness examined before it, other than the accused and any witness of his merely to his character, by a recognizance to attend and give evidence before the court of assize or quarter sessions before which the accused is to be tried ; and it shall bind the prosecutor by a recognizance to prosecute the accused before that court.

This subsection shall have effect subject to section seven of the Prosecution of Offences Act, 1879, which relates to cases the prosecution of which is carried on by the Director of Public Prosecutions.

(2) Where it appears to the court, after taking into account any representation made by the accused or prosecutor, that the attendance at the trial of any witness examined before the court is unnecessary by reason of any statement by the accused, or of the accused having admitted before the court the truth of the charge, or of the evidence of the witness being merely formal, the court shall—

(a) if the witness has not already been bound over, bind him over to attend the trial conditionally, that is to say, on notice being given to him and not otherwise ;

(b) if the witness has already been bound over, direct that he shall be treated as having been bound over to attend the trial conditionally as aforesaid.

(3) A magistrates' court on committing any person for trial shall inform him of his right to require the attendance at the trial of any witness bound over, or treated as bound over, conditionally as aforesaid and of the steps that he must take for the purpose of enforcing the attendance.

(4) If any witness on being required to enter into a recognizance under this section refuses to do so, the court may commit him to custody until after the trial of the accused or until he sooner enters into the recognizance :

Provided that if the court does not commit the accused for trial it shall release the witness.

Adjournment
of inquiry.

6.—(1) A magistrates' court may, before beginning to inquire into an offence as examining justices, or at any time during the inquiry, adjourn the hearing, and if it does so shall remand the accused.

(2) The court shall when adjourning fix the time and place at which the hearing is to be resumed ; and the time fixed shall be that at which the accused is required to appear or be brought before the court in pursuance of the remand.

7.—(1) Subject to the provisions of this and any other Act relating to the summary trial of indictable offences, if a magistrates' court inquiring into an offence as examining justices is of opinion, on consideration of the evidence and of any statement of the accused, that there is sufficient evidence to put the accused upon trial by jury for any indictable offence, the court shall commit him for trial; and, if it is not of that opinion, it shall, if he is in custody for no other cause than the offence under inquiry, discharge him.

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Discharge or
committal for
trial.

(2) The court may commit a person for trial—

- (a) in custody, that is to say, by committing him to custody there to be safely kept until delivered in due course of law; or
- (b) subject to the provisions of the next following section, on bail, that is to say, by taking from him a recognizance, with or without sureties, conditioned for his appearance at the time and place of trial,

and may, instead of taking recognizances in accordance with paragraph (b) of this subsection, fix the amount of the recognizances with a view to their being taken subsequently in accordance with section ninety-five of this Act and in the mean time commit the accused to custody in accordance with paragraph (a) of this subsection.

(3) Where the court has committed a person to custody in accordance with paragraph (a) of subsection (2) of this section, then, if that person is in custody for no other cause, the court may, at any time before the first sitting of the court before which he is to be tried, release him on his entering into such a recognizance as is mentioned in paragraph (b) of the said subsection (2).

8. A person charged with treason shall not be admitted to bail except by order of a judge of the High Court or the Secretary of State.

Bail in treason.

9.—(1) Subject to the provisions of the two next following sections, where a magistrates' court commits a person for trial it shall commit him—

- (a) if the offence for which he is committed is triable by quarter sessions, to the next quarter sessions,
- (b) if the offence is not triable by quarter sessions, to the next assizes,

Committal to
assizes or
quarter
sessions.
General
provisions.

for the place where he is to be tried.

(2) If a magistrates' court proposes to commit a person for trial before a court of assize or quarter sessions that has jurisdiction to deal with the offence by virtue only of subsection (1) of section eleven of the Criminal Justice Act, 1925 (which provides for the trial of an offence in any county or place in which the accused

PART I
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was apprehended, or is in custody on a charge for the offence or has appeared in answer to a summons), then—

- (a) if it appears to the magistrates' court that the accused would suffer hardship if he were tried in the county or place aforesaid, the court shall not commit him for trial before the said court of assize or quarter sessions ;
- (b) if the accused applies to the magistrates' court not to commit him to that court of assize or quarter sessions on the ground that he would thereby suffer hardship, and the magistrates' court refuses to comply with the application, the accused may appeal to the High Court, and the magistrates' court, on being informed by the accused of his intention so to appeal, shall not commit him to the court of assize or quarter sessions pending the appeal ;

but nothing in this subsection shall prevent a magistrates' court from committing the accused to a court of assize or quarter sessions for the place where the offence was committed or any court of assize or quarter sessions having otherwise jurisdiction to try him.

Power to
commit to
more
convenient
assizes or
quarter
sessions.

10.—(1) The magistrates' court before which any person is charged with an offence may, instead of committing him to be tried at the assizes or quarter sessions for a place to which but for this section he might have been committed, commit him to be tried at the assizes for some other place or, if the offence is triable by quarter sessions, at the quarter sessions for some other place, if it appears to the court, having regard to the time when and the place where the last-mentioned assizes or quarter sessions are to be held, to be more convenient to commit the accused to those assizes or quarter sessions with a view either to expediting his trial or saving expense :

Provided that the power given by this section shall not be exercised—

- (a) unless at the time of the committal it appears to the court unlikely that, in the case of a committal to assizes, the next assizes, or, in the case of a committal to quarter sessions, the next quarter sessions, to which but for this section he might have been committed will be held within one month from that date ; or
- (b) in any case in which the accused satisfies the court that he would, if the power were exercised, suffer hardship.

(2) Where a person is to be committed on bail for trial before a court of quarter sessions for any county or borough, and the next quarter sessions for that county or borough are due to be held within five days, the court may commit him to the next quarter sessions but one.

11. Where a magistrates' court commits a person for the trial of an offence triable by quarter sessions, then, if the court is of opinion that there are circumstances that make the case an unusually grave or difficult one, or that serious delay or inconvenience would be caused by committal to quarter sessions, the magistrates' court may commit him for trial before a court of assize.

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Committal to
assizes for
offence
triable by
quarter
sessions.

12.—(1) If any person does not appear before a court of assize or quarter sessions to plead to an indictment against him before the end of the assizes or the quarter sessions, as the case may be, at which the indictment is signed under section two of the Administration of Justice (Miscellaneous Provisions) Act, 1933, the proper officer of the court may, on application being made to him by or on behalf of the prosecutor, grant to the prosecutor a certificate of the signing of the indictment.

Committal
after failure
to appear at
assizes or
quarter
sessions.

(2) A justice of the peace for any county or borough in which any offence is charged in the indictment as having been committed or in which the accused resides or is, or is believed to reside or be, shall, on production to him of a certificate granted under the preceding subsection, issue a warrant to arrest the accused and bring him before a magistrates' court for that county or borough:

Provided that, if it is proved on oath to the satisfaction of the justice that the accused is in a prison or other place of detention, the justice shall in the absence of the accused commit him for trial.

(3) On its being proved on oath to the satisfaction of any court before which a person is brought in pursuance of a warrant under this section that he is the person named in the indictment, the court shall without further inquiry commit him for trial.

(4) A person committed for trial under this section shall be committed to the court before which he failed to appear as aforesaid:

Provided that, if that court has directed, under subsection (2) of section fourteen of the Criminal Justice Act, 1925, that his trial shall take place before another court, he shall be committed to that other court.

(5) Subject to the preceding provisions of this section, the provisions of this Act relating to committal for trial shall apply to the committal of a person under this section as they apply to the committal of a person by examining justices.

Summary trial of information

13.—(1) On the summary trial of an information, the court shall, if the accused appears, state to him the substance of the information and ask him whether he pleads guilty or not guilty.

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(2) The court, after hearing the evidence and the parties, shall convict the accused or dismiss the information.

(3) If the accused pleads guilty, the court may convict him without hearing evidence.

Adjournment
of trial.

14.—(1) A magistrates' court may at any time, whether before or after beginning to try an information, adjourn the trial, and may do so, notwithstanding anything in this Act, when composed of a single justice.

(2) The court may when adjourning either fix the time and place at which the trial is to be resumed, or, unless it remands the accused, leave the time and place to be determined later by the court; but the trial shall not be resumed at that time and place unless the court is satisfied that the parties have had adequate notice thereof.

(3) A magistrates' court may, for the purpose of enabling inquiries to be made or of determining the most suitable method of dealing with the case, exercise its power to adjourn after convicting the accused and before sentencing him or otherwise dealing with him; but, if it does so, the adjournment shall not be for more than three weeks at a time.

(4) On adjourning the trial of an information the court may remand the accused and, where the accused has attained the age of seventeen, shall do so if—

(a) the offence is not a summary one; or

(b) the court has proceeded under subsection (3) of section eighteen of this Act to summary trial after having begun to inquire into the information as examining justices;

and, where the court remands the accused, the time fixed for the resumption of the trial shall be that at which he is required to appear or be brought before the court in pursuance of the remand.

Non-
appearance
of accused.

15.—(1) Where at the time and place appointed for the trial or adjourned trial of an information the prosecutor appears but the accused does not, the court may, subject to subsection (3) of this section, proceed in his absence.

(2) Where the court, instead of proceeding in the absence of the accused, adjourns, or further adjourns, the trial, the court may, if the information has been substantiated on oath, and subject to subsection (3) of this section, issue a warrant for his arrest:

Provided that—

(a) where the accused fails to appear at an adjourned trial, the court shall not issue a warrant under this section unless it is satisfied that he has had adequate notice of the time and place of the adjourned trial; and

- (b) where the court adjourns the trial after having received any evidence, either on that or on a previous occasion, the court shall not issue a warrant under this section unless it thinks it undesirable, by reason of the gravity of the offence, to continue the trial in the absence of the accused.

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—cont.

(3) Where a summons has been issued, the court shall not begin to try the information in the absence of the accused or issue a warrant under this section unless either it is proved to the satisfaction of the court, on oath, or in such other manner as may be prescribed, that the summons was served on the accused within what appears to the court to be a reasonable time before the trial or adjourned trial or the accused has appeared on a previous occasion to answer to the information.

16.—(1) Where at the time and place appointed for the trial or adjourned trial of an information the accused appears or is brought before the court and the prosecutor does not appear, the court may dismiss the information or, if evidence has been received on a previous occasion, proceed in the absence of the prosecutor.

(2) Where, instead of dismissing the information or proceeding in the absence of the prosecutor, the court adjourns the trial, it shall not remand the accused in custody unless he has been brought from custody or cannot be remanded on bail by reason of his failure to enter into a recognizance or to find sureties.

17. Where at the time and place appointed for the trial or adjourned trial of an information neither the prosecutor nor the accused appears, the court may dismiss the information or, if evidence has been received on a previous occasion, proceed in their absence.

Offences triable on indictment or summarily

18.—(1) Where an information charges any person with an offence that is by virtue of any enactment both an indictable offence and a summary offence, the magistrates' court dealing with the information shall, if the accused has attained the age of fourteen, proceed as if the offence were not a summary offence, unless the court, having jurisdiction to try the information summarily, determines on the application of the prosecutor to do so.

(2) An application under the preceding subsection shall be made before any evidence is called and, if the accused fails to appear to answer to the information, may be made in his absence.

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—cont.

(3) Where a magistrates' court has, in pursuance of subsection (1) of this section, begun to inquire into the information as examining justices, then, if at any time during the inquiry it appears to the court, having regard to any representations made in the presence of the accused by the prosecutor, or made by the accused, and to the nature of the case, that it is proper to do so, the court may proceed to try the case summarily:

Provided that, if the prosecution is being carried on by the Director of Public Prosecutions, the court shall not act under this subsection without the Director's consent.

(4) A court proceeding to try a case summarily under the last preceding subsection shall, before asking the accused whether he pleads guilty, cause the charge to be written down, if this has not already been done, and read to him.

(5) Where, under subsection (1) of this section, a magistrates' court has begun to try an information summarily, the court may, at any time before the conclusion of the evidence for the prosecution, discontinue the summary trial and proceed to inquire into the information as examining justices.

(6) Nothing in this section shall affect any enactment enabling the accused or the prosecutor to claim that a summary offence shall be tried by a jury.

Summary
trial of
information
against adult
for certain
indictable
offences.

19.—(1) The following provisions of this section shall have effect where a person who has attained the age of seventeen appears or is brought before a magistrates' court on an information charging him with any of the indictable offences specified in the First Schedule to this Act.

(2) If at any time during the inquiry into the offence it appears to the court, having regard to any representations made in the presence of the accused by the prosecutor or made by the accused, and to the nature of the case, that the punishment that the court has power to inflict under this section would be adequate and that the circumstances do not make the offence one of serious character and do not for other reasons require trial on indictment, the court may proceed with a view to summary trial.

(3) For the purpose of proceeding as aforesaid, the court shall cause the charge to be written down, if this has not already been done, and read to the accused and shall tell him that he may, if he consents, be tried summarily instead of being tried by a jury and, if the court thinks it desirable for his information, shall tell him before what court he would be tried if tried by a jury and explain what is meant by being tried summarily.

(4) Where the offence with which the accused is charged is triable by quarter sessions, the court shall also explain to him that if he consents to be tried summarily and is convicted by the court

he may be committed to quarter sessions under section twenty-nine of this Act if the court, on obtaining information of his character and antecedents, is of opinion that they are such that greater punishment should be inflicted than the court has power to inflict.

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— cont.

(5) After informing the accused as provided by the last two preceding subsections the court shall ask him whether he wishes to be tried by a jury or consents to be tried summarily, and, if he consents, shall proceed to the summary trial of the information.

(6) A person summarily convicted of an indictable offence under this section shall be liable to imprisonment for a term not exceeding six months or a fine not exceeding one hundred pounds or both.

(7) Nothing in this section shall empower a magistrates' court to try an indictable offence summarily—

(a) without the consent of the prosecutor in a case affecting the property or affairs of Her Majesty or of a public body as defined by section seven of the Public Bodies Corrupt Practices Act, 1889 ;

(b) without the consent of the Director of Public Prosecutions where the prosecution is being carried on by him.

(8) Where any person is convicted under this section of an offence of inciting to commit a summary offence, he shall not be liable to any greater penalty than he would be liable to on being summarily convicted of the last-mentioned offence.

(9) Where a person is convicted under this section of attempting to commit an offence that is both an indictable offence and a summary offence, he shall not be liable to any greater penalty than he would be liable to on being summarily convicted of the completed offence.

20.—(1) The following provisions of this section shall have effect where a person who has attained the age of fourteen but has not attained the age of seventeen appears or is brought before a magistrates' court on an information charging him with an offence, other than homicide, that is not a summary offence.

Summary trial of information against young person for indictable offence.

(2) If at any time during the inquiry into the offence it appears to the court expedient to do so, having regard to any representations made in the presence of the accused by the prosecutor, or made by the accused, and to the nature of the offence and the circumstances of the case, the court may proceed with a view to summary trial.

(3) For the purpose of proceeding as aforesaid, the court shall cause the charge to be written down, if this has not already been done, and read to the accused and shall tell him that he may, if he consents, be tried summarily instead of being tried

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—cont.

by a jury and, if the court thinks it desirable for his information, shall tell him before what court he would be tried if tried by a jury and explain what is meant by being tried summarily.

(4) After informing the accused as provided by the last preceding subsection, the court shall ask him whether he wishes to be tried by a jury or consents to be tried summarily, and, if he consents, shall proceed to the summary trial of the information.

(5) If the court finds the accused guilty, it may—

(a) exercise the same powers as it could have exercised if he had been found guilty of an offence for which, but for subsection (2) of section one hundred and seven of this Act, the court could have sentenced him to imprisonment for a term not exceeding three months ;
or

(b) impose a fine not exceeding ten pounds.

Summary
trial of
information
against child.

21.—(1) Where a person under fourteen years old appears or is brought before a magistrates' court on an information charging him with an indictable offence other than homicide, he shall be tried summarily:

Provided that, if a person under fourteen is charged jointly with a person who has attained that age, the court may, if it considers it necessary in the interests of justice, commit them both for trial.

(2) A magistrates' court trying summarily a person under fourteen years old for an indictable offence shall in addition to its other powers have power to impose a fine.

Effect of
dismissal of
information
for indictable
offence.

22. Where on the summary trial of an information for an offence that would, but for the provisions of this Act, be punishable on conviction on indictment only the court dismisses the information, the dismissal shall have the same effect as an acquittal on indictment.

Using in
summary trial
evidence given
before
examining
justices.

23. Where under the preceding provisions of this Act a magistrates' court, having begun to inquire into an information as examining justices, proceeds to try the information summarily, any evidence already given before the court shall be deemed to have been given in and for the purposes of the summary trial.

Restriction on
discontinuing
trial and then
taking
depositions.

24. Except as provided in subsection (5) of section eighteen of this Act, a magistrates' court, having begun to try an information for any indictable offence summarily, shall not thereafter proceed to inquire into the information as examining justices.

25.—(1) Where a person who has attained the age of fourteen is charged before a magistrates' court with a summary offence for which he is liable, or would if he were adult be liable, to be sentenced by the court to imprisonment for a term exceeding three months, he may, subject to the provisions of this section, claim to be tried by a jury, unless the offence is an assault or an offence under section one of the Vagrancy Act, 1898.

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—*cont.*

Right to
claim trial
by jury for
certain
summary
offences.

(2) Where under the preceding subsection or any other enactment a person charged with a summary offence is entitled to claim to be tried by a jury, his claim shall be of no effect unless he appears in person and makes it before he pleads to the charge; and, where under any enactment the prosecutor is entitled to claim that the accused shall be tried by a jury, his claim shall be of no effect unless he makes it before the accused pleads to the charge.

(3) A magistrates' court before which a person is charged with a summary offence for which he may claim to be tried by a jury shall, before asking him whether he pleads guilty, inform him of his right and, if the court thinks it desirable for the information of the accused, tell him before what court he would be tried if tried by a jury and explain what is meant by being tried summarily; and shall then ask him whether he wishes, instead of being tried summarily, to be tried by a jury.

(4) Where the accused is charged with an offence for which he is entitled under subsection (1) of this section to be tried by a jury if he has been previously convicted of a like offence but not otherwise, the court shall explain to him that he may have a right to claim trial by a jury and, after giving him the same information as is provided by the last preceding subsection, shall ask him whether, if he has that right, he wishes, instead of being tried summarily, to be tried by a jury.

(5) Where the accused is charged with an offence that is both—

(a) a summary offence for which the accused may claim to be tried by a jury and

(b) an indictable offence triable by quarter sessions,

then, if the court, having begun under subsection (1) of section eighteen of this Act to proceed as if the offence were not a summary one, proceeds under subsection (3) of that section with a view to summary trial, it shall, before asking the accused whether he wishes to be tried by a jury, explain to him that if he is tried summarily and is convicted he may be committed for sentence to quarter sessions under section twenty-nine of this Act if the court, on obtaining information of his character and antecedents, is of opinion that they are such that greater punishment should be inflicted than the court has power to inflict.

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(6) If—

- (a) under this section or under any other enactment a person charged with a summary offence is entitled to claim to be tried by a jury and claims to be so tried ; or
- (b) the prosecutor exercises a right conferred on him by any enactment to claim that the accused shall be tried by a jury.

the court shall thereupon deal with the information in all respects as if it were for an offence punishable on conviction on indictment only ; and the offence, whether or not indictable otherwise than by virtue of any such claim, shall as respects the accused be deemed to be an indictable offence.

*Remand for medical examination*Remand for
medical
examination.

26.—(1) If, on the trial by a magistrates' court of an offence punishable on summary conviction with imprisonment, the court is satisfied that the offence has been committed by the accused, but is of opinion that an inquiry ought to be made into his physical or mental condition before the method of dealing with him is determined, the court shall adjourn the case to enable a medical examination and report to be made and shall remand him ; but the adjournment shall not be for more than three weeks at a time.

(2) Where a person who has attained the age of fourteen but not the age of seventeen is remanded in custody on such an adjournment as aforesaid, and the court is satisfied that facilities for such an inquiry as aforesaid during his detention in the remand home to which, but for this subsection, he would have been committed are not provided or otherwise made available under the Criminal Justice Act, 1948, then, if the court has been notified by the Secretary of State that a remand centre is available for the reception from that court of persons of the class or description of the person remanded, the court shall commit that person to a remand centre.

(3) Where on such an adjournment as aforesaid the accused is remanded on bail, it shall be a condition of the recognizance that he shall undergo medical examination by a duly qualified medical practitioner at such institution or place as may be specified in the recognizance or by such duly qualified medical practitioner as may be so specified ; and, if arrangements have been made for the reception of the accused, it may be a condition of the recognizance that he shall, for the purpose of the examination, reside, for such period as may be specified in the recognizance, in an institution or place so specified, not being an institution or place to which he could have been committed.

(4) Where a magistrates' court on committing any person for trial on bail is of opinion that an inquiry ought to be made as aforesaid, it may make it a condition of the recognizance taken for the purposes of his committal, but subject to the condition for his appearance, that he shall undergo medical examination or shall reside as aforesaid.

(5) The Costs in Criminal Cases Act, 1952, shall apply to a duly qualified medical practitioner who makes a report otherwise than in writing for the purposes of this section as it applies to a person called to give evidence, and shall so apply notwithstanding that the proceedings for the purposes of which the report is made are not proceedings to which section five of that Act applies.

(6) Notwithstanding anything in the Lunacy and Mental Treatment Acts, 1890 to 1930, or the Mental Deficiency Acts, 1913 to 1938, a person released on a recognizance conditioned as provided by this section may be received, for the purpose of medical examination, in an institution within the meaning of the Mental Treatment Act, 1930, or in an institution for defectives or a certified house within the meaning of the Mental Deficiency Acts, 1913 to 1938:

Provided that a person received under this section in a licensed house or registered hospital shall, for the purposes of any provisions of the Lunacy Act, 1890, relating to the number of patients who may be so received, be reckoned as a patient.

Special powers to deal with persons found guilty, etc.

27.—(1) Where under any enactment passed before the commencement of this Act a magistrates' court has power to sentence an offender to imprisonment for a period specified by the enactment, or to a fine of an amount specified by the enactment, then, except where an Act passed after the thirty-first day of December, eighteen hundred and seventy-nine, expressly provides to the contrary, the court may sentence him to imprisonment for less than that period or, as the case may be, to a fine of less than that amount. Mitigation of penalties, etc.

(2) Where under any such enactment an offender sentenced on summary conviction to imprisonment or a fine is required to enter into a recognizance with or without sureties to keep the peace or observe any other condition, the court convicting him may dispense with or modify the requirement.

(3) Where under any such enactment a magistrates' court has power to sentence an offender to imprisonment or other detention but not to a fine, then, except where an Act passed after the thirty-first day of December, eighteen hundred and seventy-nine, expressly provides to the contrary, the court may, instead of sentencing him to imprisonment or other detention, impose a

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fine not exceeding twenty-five pounds and not of such an amount as would subject him, in default of payment of the fine, to a longer term of imprisonment or detention than the term to which he is liable on conviction of the offence.

Committal to
quarter
sessions with a
view to a
Borstal
sentence.

28.—(1) Where a person is convicted by a magistrates' court of an offence punishable on summary conviction with imprisonment, then, if on the day of the conviction he is not less than sixteen but under twenty-one years old and the court is satisfied having regard to the offender's character and previous conduct and the circumstances of the offence that it is expedient for his reformation and the prevention of crime that he should undergo a period of training in a Borstal institution, the court may commit him in custody to quarter sessions for sentence in accordance with the provisions of section twenty of the Criminal Justice Act, 1948.

(2) Before committing any person for sentence under this section, the court shall consider any report or representations made by or on behalf of the Prison Commissioners on the offender's physical and mental condition and his suitability for a sentence of Borstal training; and if the court has not received such a report or representations it shall after conviction adjourn the hearing in accordance with subsection (3) of section fourteen of this Act and remand the offender in custody to enable the report or representations to be made.

(3) The court shall cause a copy of any report or representations in writing made for the purposes of the last preceding subsection to be given to the offender or his counsel or solicitor.

(4) A person committed under subsection (1) or remanded under subsection (2) of this section shall be committed—

(a) if the court has been notified by the Secretary of State that a remand centre is available for the reception, from that court, of persons of the class or description of the person committed, to a remand centre;

(b) if the court has not been so notified, to a prison:

Provided that a person under seventeen years old remanded under subsection (2) of this section shall be committed, if the court has not been so notified, to a remand home unless the court certifies that he is of so unruly a character that he cannot be safely detained in a remand home or of so depraved a character that he is not fit to be so detained.

Committal for
sentence for
indictable
offence tried
summarily.

29. Where on the summary trial under subsection (3) of section eighteen or section nineteen of this Act of an indictable offence triable by quarter sessions a person who is not less than seventeen years old is convicted of the offence, then, if on obtaining information about his character and antecedents the court is of opinion that they are such that greater punishment

should be inflicted for the offence than the court has power to inflict, the court may, instead of dealing with him in any other manner, commit him in custody to quarter sessions for sentence in accordance with the provisions of section twenty-nine of the Criminal Justice Act, 1948.

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30.—(1) Where a person is charged before a magistrates' court Reception with any act or omission as an offence punishable on summary order. conviction with imprisonment, and the court—

- (a) is satisfied that he did the act or made the omission charged; and
- (b) is satisfied on the evidence of at least two duly qualified medical practitioners that he is of unsound mind; and
- (c) is also satisfied that he is a proper person to be detained,

the court may, instead of dealing with him in any other manner, by order direct him to be received and detained in such institution for persons of unsound mind as may be named in the order, and may further direct the duly authorised officer of the local health authority in whose area the court is situated, or any constable, to take the person of unsound mind forthwith to that institution; and the Lunacy and Mental Treatment Acts, 1890 to 1930, shall have effect as if an order made under this section were a summary reception order made under section sixteen of the Lunacy Act, 1890.

(2) The Costs in Criminal Cases Act, 1952, shall apply to any duly qualified medical practitioner who gives evidence for the purposes of this section notwithstanding that the proceedings in which the evidence is given are not proceedings to which section five of that Act applies.

Fines, restitution and compensation

31.—(1) In fixing the amount of a fine, a magistrates' court shall take into consideration among other things the means of the person on whom the fine is imposed so far as they appear or are known to the court. Fixing amount of fine.

(2) In fixing the amount of a fine, a magistrates' court shall not take into consideration the amount of the court fees and police fees payable in the case; and payment of those fees shall not be required in addition to the fine.

(3) In this section the expression "police fees" means all fees payable to a constable.

32. A magistrates' court shall not on finding guilty a person under fourteen years old impose a fine of more than forty shillings. Fines in respect of children.

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Restitution
of stolen
property.

33.—(1) Where any person has been summarily convicted under this Act of an offence that is not a summary offence, the court may make the like order for the restitution of property as might have been made by the court before which the offender would have been tried had he been tried on indictment.

(2) Where a magistrates' court has ordered the restitution of any stolen property, the court shall have the power conferred on a court of assize or quarter sessions by subsection (3) of section forty-five of the Larceny Act, 1916, to order that the proceeds of the sale of the stolen property to an innocent person shall be paid to the purchaser out of any money taken from the offender on his arrest.

Compensation
on conviction
of felony.

34. Where a magistrates' court convicts a person of felony, the court shall have the same power to award a sum of money to any person aggrieved as a court of assize or quarter sessions has under section four of the Forfeiture Act, 1870; and any sum so awarded shall be enforceable in the same way as costs ordered to be paid by the offender.

Miscellaneous

Aiders and
abettors.

35. A person who aids, abets, counsels or procures the commission by another person of a summary offence shall be guilty of the like offence and may be tried (whether or not he is charged as a principal) either by a court having jurisdiction to try that other person or by a court having by virtue of his own offence jurisdiction to try him.

Corporations.

36. The provisions of the Second Schedule to this Act shall have effect where a corporation is charged with an offence before a magistrates' court.

Service of
summons out
of time after
failure to prove
service by post.

37. Where any enactment requires, expressly or by implication, that a summons in respect of an offence shall be issued or served within a specified period after the commission of the offence, and service of the summons may under the rules be effected by post, then, if under the rules service of the summons is not treated as proved, but it is shown that a letter containing the summons was posted at such time as to enable it to be delivered in the ordinary course of post within that period, a second summons may be issued on the same information; and the enactment shall have effect, in relation to that summons, as if the specified period were a period running from the return day of the original summons.

Bail on arrest
without
warrant.

38.—(1) On a person's being taken into custody for an offence without a warrant, a police officer not below the rank of inspector, or the police officer in charge of the police station to which the person is brought, may, and, if it will not be practicable to bring him before a magistrates' court within twenty-four hours after his being taken into custody, shall, inquire into the case and, unless the offence appears to the officer to be a serious

one, release him on his entering into a recognizance, with or without sureties, for a reasonable amount, conditioned for his appearance before a magistrates' court at the time and place named in the recognizance.

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The provisions of this subsection shall not affect the provisions of section thirty-two of the Children and Young Persons Act, 1933 (which relates to the release on bail of persons under seventeen).

(2) Where, on a person's being taken into custody for an offence without a warrant, it appears to any such officer as aforesaid that the inquiry into the case cannot be completed forthwith, he may release that person on his entering into a recognizance, with or without sureties, for a reasonable amount, conditioned for his appearance at such a police station and at such a time as is named in the recognizance unless he previously receives a notice in writing from the officer in charge of that police station that his attendance is not required; and any such recognizance may be enforced as if it were conditioned for the appearance of that person before a magistrates' court for the petty sessions area in which the police station named in the recognizance is situated.

(3) A recognizance conditioned for the appearance of a person at a police station as mentioned in the last preceding subsection may, where that person is apparently under seventeen years old, be taken from his parent or guardian with or without sureties.

(4) Where a person is taken into custody for an offence without a warrant and is retained in custody, he shall be brought before a magistrates' court as soon as practicable.

39. Where a summons or warrant has been issued requiring any person to appear or be brought before a magistrates' court to answer to an information, or where any person has been arrested without a warrant for an offence, and property has been taken from him after the issue of the summons or warrant or, as the case may be, on or after his arrest without a warrant, the police shall report the taking of the property, with particulars of the property, to the magistrates' court which deals with the case; and, if the court, being of opinion that the whole or any part of the property can be returned to the accused consistently with the interests of justice and the safe custody of the accused, so directs, the property, or such part of it as the court directs, shall be returned to the accused or to such other person as he may require.

Return of
property taken
from accused.

40.—(1) Where any person not less than fourteen years old who has been taken into custody is charged with an offence before a magistrates' court, the court may, if it thinks fit, on the application of a police officer not below the rank of inspector, order the finger-prints of that person to be taken by a constable.

Taking
finger-prints.

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—cont.

(2) Finger-prints taken in pursuance of an order under this section shall be taken either at the place where the court is sitting or, if the person to whom the order relates is remanded in custody, at any place to which he is committed; and a constable may use such reasonable force as may be necessary for that purpose.

(3) The provisions of this section shall be in addition to those of any other enactment under which finger-prints may be taken.

(4) Where the finger-prints of any person have been taken in pursuance of an order under this section, then, if he is acquitted, or the examining justices determine not to commit him for trial, or if the information against him is dismissed, the finger-prints and all copies and records of them shall be destroyed.

Deposition of
person
dangerously ill.

41.—(1) Where a person appears to a justice of the peace to be able and willing to give material information relating to an indictable offence or to any person accused of an indictable offence, and—

(a) the justice is satisfied, on a representation made by a duly qualified medical practitioner, that the person able and willing to make the statement is dangerously ill and unlikely to recover; and

(b) it is not practicable for examining justices to take the evidence of the sick person in accordance with the provisions of this Act and the rules,

the justice may take in writing the deposition of the sick person on oath.

(2) A deposition taken under this section may be given in evidence before examining justices inquiring into an information against the offender or in respect of the offence to which the deposition relates, but subject to the same conditions as apply, under section six of the Criminal Law Amendment Act, 1867, to its being given in evidence upon the trial of the offender or offence.

Construction
of references
to complaint
in enactments
dealing with
offences.

42. In any enactment conferring power on a magistrates' court to deal with an offence, or to issue a summons or warrant against a person suspected of an offence, on the complaint of any person, for references to a complaint there shall be substituted references to an information.

PART II

CIVIL JURISDICTION AND PROCEDURE

Jurisdiction to issue summons and deal with complaints

Issue of
summons on
complaint.

43. Subject to the provisions of this Act, where a complaint is made to a justice of the peace acting for any petty sessions area upon which a magistrates' court acting for that area has

power to make an order against any person, the justice may issue a summons directed to that person requiring him to appear before a magistrates' court acting for that area to answer to the complaint.

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44. Where no express provision is made by any Act or the rules specifying what magistrates' courts shall have jurisdiction to hear a complaint, a magistrates' court shall have such jurisdiction if the complaint relates to anything done within the petty sessions area for which the court acts or anything left undone that ought to have been done there, or ought to have been done either there or elsewhere, or relates to any other matter arising within that area. Jurisdiction to deal with complaints.

Hearing of complaint

45.—(1) On the hearing of a complaint, the court shall, if the defendant appears, state to him the substance of the complaint. Procedure on hearing.

(2) The court, after hearing the evidence and the parties, shall make the order for which the complaint is made or dismiss the complaint.

(3) Where a complaint is for an order for the payment of a sum recoverable summarily as a civil debt, or for the variation of the rate of any periodical payments ordered by a magistrates' court to be made, or for such other matter as may be prescribed, the court may make the order with the consent of the defendant without hearing evidence.

46.—(1) A magistrates' court may at any time, whether before or after beginning to hear a complaint, adjourn the hearing, and may do so, notwithstanding anything in this Act, when composed of a single justice. Adjournment.

(2) The court may when adjourning either fix the time and place at which the hearing is to be resumed or, unless it remands the defendant under the next following section, leave the time and place to be determined later by the court; but the hearing shall not be resumed at that time and place unless the court is satisfied that the parties have had adequate notice thereof.

47.—(1) Where at the time and place appointed for the hearing or adjourned hearing of a complaint the complainant appears but the defendant does not, the court may, subject to subsection (3) of this section, proceed in his absence. Non-appearance of defendant.

(2) Where the court, instead of proceeding in the absence of the defendant, adjourns, or further adjourns, the hearing, the court may, if the complaint has been substantiated on oath, and subject to the following provisions of this section, issue a warrant for his arrest.

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—*cont.*

(3) The court shall not begin to hear the complaint in the absence of the defendant or issue a warrant under this section unless either it is proved to the satisfaction of the court, on oath, or in such other manner as may be prescribed, that the summons was served on him within what appears to the court to be a reasonable time before the hearing or adjourned hearing or the defendant has appeared on a previous occasion to answer to the complaint.

(4) Where the defendant fails to appear at an adjourned hearing, the court shall not issue a warrant under this section unless it is satisfied that he has had adequate notice of the time and place of the adjourned hearing.

(5) Where the defendant is arrested under a warrant issued under this section, the court may, on any subsequent adjournment of the hearing, but subject to the provisions of the next following subsection, remand him.

(6) The court shall not issue a warrant or remand a defendant under this section or further remand him by virtue of subsection (2) of section one hundred and five of this Act after he has given evidence in the proceedings.

(7) Where the court remands the defendant, the time fixed for the resumption of the hearing shall be that at which he is required to appear or be brought before the court in pursuance of the remand.

(8) A warrant under this section shall not be issued in any proceedings for the recovery or enforcement of a sum recoverable summarily as a civil debt or in proceedings in any matter of bastardy.

Non-
appearance of
complainant.

48. Where at the time and place appointed for the hearing or adjourned hearing of a complaint the defendant appears but the complainant does not, the court may dismiss the complaint or, if evidence has been received on a previous occasion, proceed in the absence of the complainant.

Non-
appearance of
both parties.

49. Where at the time and place appointed for the hearing or adjourned hearing of a complaint neither the complainant nor the defendant appears, the court may dismiss the complaint.

Civil debt

Money
recoverable
summarily as
civil debt.

50.—(1) A magistrates' court shall have power to make an order on complaint for the payment of any money recoverable summarily as a civil debt.

(2) Any sum payment of which may be ordered by a magistrates' court shall be recoverable summarily as a civil debt except—

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—cont.

- (a) a sum recoverable on complaint for an affiliation order or order enforceable as an affiliation order ; or
- (b) a sum that may be adjudged to be paid by a summary conviction or by an order enforceable as if it were a summary conviction.

Affiliation orders and orders for periodical payment

51.—(1) An application under section three of the Bastardy Laws Amendment Act, 1872, for a summons to be served on the man alleged to be the father of a bastard child shall be made by complaint ; and if the complaint is made before the birth of the child it shall be substantiated on oath. Complaint for affiliation order.

(2) Subject to the provisions of subsection (2) of section three of the Maintenance Orders Act, 1950 (which relates to a complaint by a person residing in Scotland or Northern Ireland), a complaint such as is mentioned in the preceding subsection shall not be heard except by a magistrates' court acting for the petty sessions area in which the mother resides.

(3) If the justice to whom such a complaint has been made dies, or ceases to be a justice, or is unable to act, any other justice acting for the same petty sessions area may issue the summons.

(4) On the hearing of such a complaint, the court shall hear the evidence of the mother as required by section four of the said Act of 1872 notwithstanding any consent or admission on the part of the defendant.

52.—(1) Where a magistrates' court orders money to be paid periodically by one person to another, the court may order that the payment shall be made to the clerk of the court or the clerk of any other magistrates' court. Periodical payment through justices' clerk.

(2) Where the order is an affiliation order, an order under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949, or an order under the Guardianship of Infants Acts, 1886 and 1925, the court shall, unless upon representations expressly made in that behalf by the applicant for the order it is satisfied that it is undesirable to do so, exercise its power under the preceding subsection :

Provided that, where the court, on the application of a husband for an order under the Summary Jurisdiction (Separation and

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—cont.

Maintenance) Acts, 1895 to 1949, orders the payment of weekly sums by the husband for the wife's benefit, this subsection shall have effect as if for the reference therein to the applicant for the order there were substituted a reference to his wife.

(3) Where an order under subsection (1) of this section requires the payments to be made weekly, and any sums payable under the order are in arrear, the clerk shall, if the person for whose benefit the payment should have been made so requests in writing, and unless it appears to the clerk that it is unreasonable in the circumstances to do so, proceed in his own name for the recovery of those sums; but the said person shall have the same liability for all the costs properly incurred in or about the proceedings as if the proceedings had been taken by him.

(4) Nothing in this section shall affect any right of a person to proceed in his own name for the recovery of sums payable on his behalf under any order under subsection (1) of this section.

Revocation,
variation, etc.,
of orders for
periodical
payment.

53. Where a magistrates' court has made an order for the periodical payment of money, the court may, by order on complaint, revoke, revive or vary the order.

Orders other than for payment of money

Orders other
than for
payment of
money.

54.—(1) Where under any Act passed after the thirty-first day of December, eighteen hundred and seventy-nine, a magistrates' court has power to require the doing of any thing other than the payment of money, or to prohibit the doing of any thing, any order of the court for the purpose of exercising that power may contain such provisions for the manner in which anything is to be done, for the time within which anything is to be done, or during which anything is not to be done, and generally for giving effect to the order, as the court thinks fit.

(2) The court may by order made on complaint suspend or rescind any such order as aforesaid.

(3) Where any person disobeys an order of a magistrates' court made under an Act passed after the thirty-first day of December, eighteen hundred and seventy-nine, to do anything other than the payment of money or to abstain from doing anything, the court may—

(a) order him to pay a sum not exceeding one pound for every day during which he is in default; or

(b) commit him to custody until he has remedied his default:

Provided that a person shall not by virtue of this section be ordered to pay more than twenty pounds or be committed for

more than two months in all for disobeying one or more orders to do or abstain from doing the same thing.

PART II
—cont.

(4) Any sum ordered to be paid under the last preceding subsection shall be enforceable as a civil debt.

(5) The preceding provisions of this section shall not apply to any order for the enforcement of which provision is made by any other enactment.

Costs

55.—(1) On the hearing of a complaint, a magistrates' court shall have power in its discretion to make such order as to costs— Power to award costs and enforcement of costs.

(a) on making the order for which the complaint is made, to be paid by the defendant to the complainant ;

(b) on dismissing the complaint, to be paid by the complainant to the defendant,

as it thinks just and reasonable :

Provided that, if the complaint is for an order for the periodical payment of money, or for the revocation, revival or variation of such an order, or for the enforcement of such an order, the court may, whatever adjudication it makes, order either party to pay the whole or any part of the other's costs.

(2) The amount of any sum ordered to be paid under the preceding subsection shall be specified in the order, or order of dismissal, as the case may be.

(3) Subject to the next following subsection, costs ordered to be paid under this section shall be enforceable as a civil debt.

(4) Any costs awarded on a complaint for an affiliation order or order enforceable as an affiliation order, or for the enforcement, variation, revocation, discharge or revival of such an order, against the person liable to make payments under the order shall be enforceable as a sum ordered to be paid by an affiliation order.

(5) The preceding provisions of this section shall have effect subject to any other Act enabling a magistrates' court to order a successful party to pay the other party's costs.

Domestic proceedings

56.—(1) In this Act the expression "domestic proceedings" means proceedings— Domestic proceedings and constitution of courts.

(a) under the Guardianship of Infants Acts, 1886 and 1925 ;

(b) under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949 ;

PART II
—cont.

(c) under section three or section four of the Maintenance Orders (Facilities for Enforcement) Act, 1920 ;

(d) under subsection (3) of section four of the Family Allowances Act, 1945, or under that subsection as applied by subsection (2) of section nineteen of the National Insurance Act, 1946 ;

(e) under section three of the Marriage Act, 1949,

other than proceedings for the enforcement of an order made under any of the enactments mentioned in paragraphs (a) and (b) of this subsection, or for the variation of any provision for the payment of money contained in an order made under any of those enactments, or in an order made or confirmed under the enactments mentioned in paragraph (c) of this subsection.

(2) A magistrates' court when hearing domestic proceedings shall be composed of not more than three justices of the peace, including, so far as practicable, both a man and a woman.

Sittings of
magistrates'
courts for
domestic
proceedings.

57.—(1) The business of magistrates' courts shall, so far as is consistent with the due dispatch of business, be arranged in such manner as may be requisite for separating the hearing and determination of domestic proceedings from other business.

(2) No person shall be present during the hearing and determination by a magistrates' court of any domestic proceedings, except—

(a) officers of the court ;

(b) parties to the case before the court, their solicitors and counsel, witnesses and other persons directly concerned in the case, and other persons whom either party desires to be present ;

(c) solicitors and counsel in attendance for other cases ;

(d) representatives of newspapers or news agencies ;

(e) any other person whom the court may permit to be present, so, however, that permission shall not be withheld from a person who appears to the court to have adequate grounds for attendance.

(3) When hearing domestic proceedings, a magistrates' court may, if it thinks it necessary in the interest of the administration of justice or of public decency, direct that any persons, not being officers of the court or parties to the case, the parties' solicitors or counsel, or other persons directly concerned in the case, be excluded during the taking of any indecent evidence.

(4) Where the same parties are parties to domestic proceedings and to proceedings for the enforcement of an order made under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949, or the Guardianship of Infants Acts, 1886 and

1925, or made or confirmed under the Maintenance Orders (Facilities for Enforcement) Act, 1920, or for the variation of any provision for the payment of money contained in an order made or confirmed under any of those Acts, and the proceedings are heard together by a magistrates' court, the provisions of the last two preceding subsections shall, unless the court otherwise determines, have effect as if the whole of those proceedings were domestic proceedings.

(5) The powers conferred on a magistrates' court by this section shall be in addition and without prejudice to any other powers of the court to hear proceedings *in camera*.

(6) Nothing in this section shall affect the exercise by a magistrates' court of the power to direct that witnesses shall be excluded until they are called for examination.

58.—(1) It shall not be lawful for the proprietor, editor or publisher of a newspaper or periodical to print or publish, or cause or procure to be printed or published, in it any particulars of domestic proceedings in a magistrates' court other than the following, that is to say—

- (a) the names, addresses and occupations of the parties and witnesses ;
- (b) the grounds of the application, and a concise statement of the charges, defences and counter-charges in support of which evidence has been given ;
- (c) submissions on any point of law arising in the course of the proceedings and the decision of the court on the submissions ;
- (d) the decision of the court, and any observations made by the court in giving it.

(2) Any person acting in contravention of this section shall be liable on summary conviction to imprisonment for a term not exceeding four months or a fine not exceeding one hundred pounds or both.

(3) No prosecution for an offence under this section shall be begun without the consent of the Attorney General.

(4) Nothing in this section shall prohibit the printing or publishing of any matter in a newspaper or periodical of a technical character *bona fide* intended for circulation among members of the legal or medical professions.

59.—(1) Where in any domestic proceedings under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949, a magistrates' court has requested a probation officer or any other person to attempt to effect a conciliation between the parties, the probation officer or that other person may, if the

Newspaper
reports of
domestic
proceedings.

Report by
probation
officer on
attempted
conciliation.

PART II
—cont.

attempt has proved unsuccessful and he thinks fit in the circumstances of the case to do so, furnish to the court a report made in the prescribed form and containing—

- (a) the allegations made by the complainant and defendant respectively ; and
- (b) information about such other matters relating to the proceedings or to the parties as may be prescribed :

Provided that no allegation made by a party shall be included in a report made under this subsection without his or her consent in writing.

(2) Where a probation officer or other person furnishes a report to the court under this section he shall cause copies of it to be delivered to the complainant and the defendant, or sent by post addressed to each of them at his or her last or usual place of abode.

(3) Where a report made by a probation officer or other person has been furnished to the court and delivered or sent to the complainant and the defendant under this section, the court may, if it thinks fit, make use of the report for the purpose of putting or causing to be put questions to any witness ; so, however, that nothing contained in the report shall be received by the court as evidence.

Report by
probation
officer on
means of
parties.

60.—(1) Where in any domestic proceedings in which an order may be made for the periodical payment of money by any person, or in any proceedings for the enforcement or variation of any such order, or in any proceedings in any matter of bastardy, a magistrates' court has requested a probation officer to investigate the means of the parties to the proceedings, the court may direct the probation officer to report the result of his investigation to the court in accordance with the provisions of this section :

Provided that in the case of any such domestic proceedings or of proceedings for an affiliation order no direction to report to the court shall be given to a probation officer under this subsection until the court has determined all issues arising in the proceedings other than the amount to be directed to be paid by such an order.

(2) Where the court directs a probation officer under this section to report to the court the result of any such investigation as aforesaid, the court may require him—

- (a) to furnish to the court a statement in writing about his investigation, which shall be read aloud in the presence of such parties to the proceedings as may be present at the hearing ; or
- (b) to make an oral statement to the court about his investigation.

(3) Immediately after the statement of the probation officer has been read aloud or made, as the case may be, under the last preceding subsection, the court shall ask each party to the proceedings whether he or she objects to anything contained in the statement; and where objection is made the court shall require the probation officer to give evidence on oath about his investigation.

PART II
—cont.

(4) Any statement made by a probation officer in a statement furnished or made by him under subsection (2) of this section, or any evidence which he is required to give under subsection (3) of this section, may be received by the court as evidence, notwithstanding anything to the contrary in any enactment or rule of law relating to the admissibility of evidence.

61. Where in any domestic proceedings, or in any proceedings for the enforcement or variation of an order made in domestic proceedings, or in proceedings in any matter of bastardy, it appears to a magistrates' court that any party to the proceedings who is not legally represented is unable effectively to examine or cross-examine a witness, the court shall ascertain from that party what are the matters about which the witness may be able to depose or on which the witness ought to be cross-examined, as the case may be, and shall put, or cause to be put, to the witness such questions in the interests of that party as may appear to the court to be proper. Examination of witnesses by court.

62. Where a magistrates' court determines to request a probation officer or other person to attempt to effect conciliation between parties to any domestic proceedings under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949, the court shall have regard to the religious persuasion of the parties, and, if the court determines to request a probation officer to attempt to effect conciliation, it shall, where the religious persuasion of both parties is the same, select for that purpose a probation officer of that religious persuasion if such a probation officer is available. Religion of probation officer.

PART III

SATISFACTION AND ENFORCEMENT

General provisions

63.—(1) A magistrates' court by whose conviction or order a sum is adjudged to be paid may, instead of requiring immediate payment, allow time for payment, or order payment by instalments. Power to dispense with immediate payment.

(2) Where a magistrates' court has allowed time for payment, the court may, on application by or on behalf of the person

PART III
—cont.

liable to make the payment, allow further time or order payment by instalments.

(3) Where a court has ordered payment by instalments and default is made in the payment of any one instalment, proceedings may be taken as if the default had been made in the payment of all the instalments then unpaid.

Enforcement
of sums
adjudged to
be paid.

64.—(1) Subject to the following provisions of this Part of this Act, and to section one hundred and seven of this Act, where default is made in paying a sum adjudged to be paid by a conviction or order of a magistrates' court, the court may issue a warrant of distress for the purpose of levying the sum or issue a warrant committing the defaulter to prison.

(2) A warrant of commitment may be issued as aforesaid either—

(a) where it appears on the return to a warrant of distress that the money and goods of the defaulter are insufficient to satisfy the sum with the costs and charges of levying the sum; or

(b) instead of a warrant of distress.

(3) The period for which a person may be committed to prison under such a warrant as aforesaid shall not, subject to the provisions of any enactment passed after the thirty-first day of December, eighteen hundred and seventy-nine, exceed the period applicable to the case under the Third Schedule to this Act.

Postponement
of issue of
a warrant.

65.—(1) Where a magistrates' court has power to issue a warrant of distress under this Part of this Act, it may, if it thinks it expedient to do so, postpone the issue of the warrant until such time and on such conditions, if any, as the court thinks just.

(2) Where a magistrates' court has power to issue a warrant of commitment under this Part of this Act, it may, if it thinks it expedient to do so, fix a term of imprisonment and postpone the issue of the warrant until such time and on such conditions, if any, as the court thinks just.

Defect in
distress
warrant and
irregularity in
its execution.

66.—(1) A warrant of distress issued for the purpose of levying a sum adjudged to be paid by the conviction or order of a magistrates' court shall not, if it states that the sum has been so adjudged to be paid, be held void by reason of any defect in the warrant.

(2) A person acting under a warrant of distress shall not be deemed to be a trespasser from the beginning by reason only of any irregularity in the execution of the warrant.

(3) Nothing in this section shall prejudice the claim of any person for special damages in respect of any loss caused by a defect in the warrant or irregularity in its execution.

PART III
—cont.

(4) If any person removes any goods marked in accordance with the rules as articles impounded in the execution of a warrant of distress, or defaces or removes any such mark, he shall be liable on summary conviction to a fine not exceeding five pounds.

(5) If any person charged with the execution of a warrant of distress wilfully retains from the proceeds of a sale of the goods on which distress is levied, or otherwise exacts, any greater costs and charges than those properly payable, or makes any improper charge, he shall be liable on summary conviction to a fine not exceeding five pounds.

67.—(1) Where imprisonment or other detention has been imposed on any person by the order of a magistrates' court in default of payment of any sum adjudged to be paid by the conviction or order of a magistrates' court or for want of sufficient distress to satisfy such a sum, then, on the payment of the sum, together with the costs and charges, if any, of the commitment and distress, the order shall cease to have effect; and if the person has been committed to custody he shall be released unless he is in custody for some other cause.

Release
from custody
and reduction
of detention
on payment.

(2) Where, after a period of imprisonment or other detention has been imposed on any person in default of payment of any sum adjudged to be paid by the conviction or order of a magistrates' court or for want of sufficient distress to satisfy such a sum, payment is made in accordance with the rules of part of the sum, the period of detention shall be reduced by such number of days as bears to the total number of days in that period less one day the same proportion as the amount so paid bears to so much of the said sum, and the costs and charges of any distress levied to satisfy that sum, as was due at the time the period of detention was imposed.

(3) In calculating the reduction required under the last preceding subsection any fraction of a day shall be left out of account.

68.—(1) Where a magistrates' court has adjudged a person to pay a sum by a conviction or has ordered the enforcement of a sum due from a person under an affiliation order or an order enforceable as an affiliation order, the court may order him to be searched.

Application
of money
found on
defaulter to
satisfy sum
adjudged.

(2) Any money found on the arrest of a person adjudged to pay such a sum as aforesaid, or on a search as aforesaid, or on his being taken to a prison or other place of detention in default of payment of such a sum or for want of sufficient

PART III
—cont.

distress to satisfy such a sum, may, unless the court otherwise directs, be applied towards payment of the said sum; and the balance, if any, shall be returned to him.

(3) A magistrates' court shall not allow the application as aforesaid of any money found on a person if it is satisfied that the money does not belong to him or that the loss of the money would be more injurious to his family than would be his detention.

Sums adjudged to be paid by a summary conviction

Restrictions on
power to
impose
imprisonment
on conviction.

69.—(1) A magistrates' court on adjudging a person to pay a sum by a conviction shall, subject to the provisions of the next following subsection, allow him at least seven days to pay the sum or the first instalment of the sum.

(2) If the offender fails to pay the sum on the occasion of his conviction and—

- (a) he appears to the court to have sufficient means to pay the sum forthwith; or
- (b) on being asked by the court whether he wishes to have time for payment, he does not ask for time; or
- (c) he fails to satisfy the court that he has a fixed abode; or
- (d) there is some other special circumstance appearing to the court to justify immediate committal,

the court may on that occasion issue a warrant of commitment under this Part of this Act, and if it does so shall state in the warrant the reasons for not allowing the offender time to pay.

(3) Where time is allowed for payment, or payment by instalments is ordered, a magistrates' court shall not on the occasion of the conviction impose a term of imprisonment in the event of a future default in paying the sum adjudged to be paid by the conviction unless the offender is present and the court determines that for special reason, whether having regard to the gravity of the offence, to the character of the offender or other special circumstances, it is expedient that he should be imprisoned without further inquiry in default of payment.

Where a court imposes a term of imprisonment as aforesaid, it shall state its reason for doing so.

(4) Where a magistrates' court has imposed a term of imprisonment as provided by the last preceding subsection, then, if at any time the offender asks the court to commit him to prison immediately, the court may do so notwithstanding anything in subsection (1) of this section.

(5) Nothing in this section shall affect the power of a magistrates' court to enforce by distress payment of a sum adjudged to be paid by a conviction.

70.—(1) Where the court does not on the occasion of the conviction issue a warrant of commitment or fix a term of imprisonment as provided by the last preceding section, it shall not commit an offender to prison for failing to pay a sum adjudged to be paid by a summary conviction or for want of sufficient distress to satisfy such a sum unless, on an occasion subsequent to the conviction, the court has inquired into his means in his presence.

PART III
—cont.

Restriction on
committal after
conviction.
Means
inquiry.

This subsection shall not apply where the offender is in prison.

(2) A magistrates' court may, for the purpose of enabling inquiry to be made under this section—

(a) issue a summons requiring the offender to appear before the court at the time and place appointed in the summons; or

(b) issue a warrant to arrest him and bring him before the court.

(3) On the failure of the offender to appear before the court in answer to a summons under this section the court may issue a warrant to arrest him and bring him before the court.

(4) A warrant issued under this section may be executed in like manner, and the like proceedings may be taken with a view to its execution, in any part of the United Kingdom, as if it had been issued under section fifteen of this Act.

(5) Notwithstanding anything in section one hundred and two of this Act, a warrant under this section shall cease to have effect when the sum in respect of which the warrant is issued is paid to the police officer holding the warrant.

71.—(1) Where any person is adjudged to pay a sum by a summary conviction and the convicting court does not commit him to prison forthwith in default of payment, the court may, either on the occasion of the conviction or on a subsequent occasion, order him to be placed under the supervision of such person as the court may from time to time appoint.

Supervision
pending
payment.

(2) An order placing a person under supervision in respect of any sum shall remain in force so long as he remains liable to pay the sum or any part of it unless the order ceases to have effect or is discharged under the next following subsection.

(3) An order under this section shall cease to have effect on the making of a transfer of fine order under section seventy-two of this Act with respect to the sum adjudged to be paid and may be discharged by the court that made it, without prejudice in either case to the making of a new order.

(4) Where a person under twenty-one years old has been adjudged to pay a sum by a summary conviction and the convicting court does not commit him to prison forthwith in default of payment, the court shall not commit him to prison in default

PART III
—*cont.*

of payment of the sum, or for want of sufficient distress to satisfy the sum, unless he has been placed under supervision in respect of the sum or the court is satisfied that it is undesirable or impracticable to place him under supervision.

(5) Where a court, being satisfied as aforesaid, commits a person under twenty-one years old to prison without an order under this section having been made, the court shall state the grounds on which it is so satisfied in the warrant of commitment.

(6) Where an order placing a person under supervision with respect to a sum is in force, a magistrates' court shall not commit him to prison in default of payment of the sum, or for want of sufficient distress to satisfy the sum, unless the court has before committing him taken such steps as may be reasonably practicable to obtain from the person appointed for his supervision an oral or written report on the offender's conduct and means and has considered any report so obtained, in addition, in a case where an inquiry is required by the last preceding section, to that inquiry.

**Transfer of
fine order.**

72.—(1) Where a magistrates' court has by a conviction adjudged a person to pay a sum and it appears to the court that the offender is residing in any petty sessions area other than that for which the court acted, the court may make a transfer of fine order, that is to say, an order making payment enforceable in the petty sessions area in which he is residing; and that area shall be specified in the order.

(2) As from the date on which a transfer of fine order is made with respect to any sum, all functions under this Part of this Act relating to that sum which, if no such order had been made, would have been exercisable by the convicting court, or the clerk of that court, shall be exercisable by a court acting for the petty sessions area specified in the order, or the clerk of that court, as the case may be, and not otherwise.

(3) Where it appears to a court by which functions in relation to any sum are for the time being exercisable by virtue of a transfer of fine order that the person liable to pay the sum is residing in a petty sessions area other than that for which the court is acting, the court may make a further transfer of fine order with respect to that sum.

*Civil debt***Restriction on
committal for
civil debt.**

73.—(1) A magistrates' court shall not commit any person to prison or other detention in default of payment of a sum enforceable as a civil debt or for want of sufficient distress to satisfy such a sum except by an order made on complaint and on proof to the satisfaction of the court that that person has, or has had since the date on which the sum was adjudged to be paid, the means to pay the sum or any instalment of it on which

he has defaulted, and refuses or neglects or, as the case may be, has refused or neglected to pay it.

PART III
—cont.

(2) A complaint under this section may be made at any time notwithstanding anything in this or any other Act.

(3) Where on any such complaint the defendant is committed to custody, such costs incurred by the complainant in proceedings for the enforcement of the sum as the court may direct shall be included in the sum on payment of which the defendant may be released from custody.

Arrears under affiliation order, etc.

74.—(1) Where default is made in paying a sum ordered to be paid by an affiliation order or order enforceable as an affiliation order, the court shall not enforce payment of the sum under section sixty-four of this Act except by an order made on complaint. Complaint
for arrears.

(2) A complaint under this section shall be made not earlier than the fifteenth day after the making of the order for the enforcement of which it is made ; but subject to this such a complaint may be made at any time notwithstanding anything in this or any other Act.

(3) A magistrates' court shall not hear a complaint under this section except in the presence of the defendant ; and for the purpose of securing his presence a justice of the peace acting for the petty sessions area for which the court acts may, if the complaint is substantiated on oath, issue a warrant to arrest the defendant and bring him before the court, whether or not a summons has been previously issued.

(4) Nothing in the last preceding subsection shall prohibit a magistrates' court from adjourning the hearing in the absence of the defendant.

(5) Where at the time and place appointed for the hearing or adjourned hearing of a complaint under this section the complainant does not appear, the court may, notwithstanding anything in section forty-eight of this Act, proceed in his absence whether or not evidence has been received on a previous occasion.

(6) On the hearing of a complaint under this section the court shall inquire whether the default of the defendant was due to his wilful refusal or culpable neglect ; and, if it is of opinion that the default was not due to such refusal or neglect as aforesaid, it shall not issue a warrant of commitment to enforce payment of the sum due.

(7) Where on a complaint to enforce such an order as aforesaid the defendant is not committed to custody, a new complaint

PART III
—cont.

may be made on the ground that the circumstances of the defendant have changed.

Effect of
committal on
arrears.

75. Where a person is committed to custody under this Part of this Act for failure to pay a sum due under an affiliation order or order enforceable as an affiliation order, then, unless the court that commits him otherwise directs, no arrears shall accrue under the order while he is in custody.

Power to remit
arrears.

76. On the hearing of a complaint for the enforcement, revocation, revival, variation or discharge of an affiliation order or an order enforceable as an affiliation order, the court may remit the whole or any part of the sum due under the order.

PART IV**WITNESSES AND EVIDENCE***Procuring attendance of witness*

Summons to
witness and
warrant for his
arrest.

77.—(1) Where a justice of the peace for any county or borough is satisfied that any person in England or Wales is likely to be able to give material evidence, or produce any document or thing likely to be material evidence, at an inquiry into an indictable offence by a magistrates' court for that county or borough or at the summary trial of an information or hearing of a complaint by such a court and that that person will not voluntarily attend as a witness or will not voluntarily produce the document or thing, the justice shall issue a summons directed to that person requiring him to attend before the court at the time and place appointed in the summons to give evidence or to produce the document or thing.

(2) If a justice of the peace is satisfied by evidence on oath of the matters mentioned in the preceding subsection, and also that it is probable that a summons under the preceding subsection would not procure the attendance of the person in question, the justice may instead of issuing a summons issue a warrant to arrest that person and bring him before such a court as aforesaid at a time and place specified in the warrant:

Provided that a warrant shall not be issued under this subsection where the attendance is required for the hearing of a complaint.

(3) On the failure of any person to attend before a magistrates' court in answer to a summons under this section, if—

(a) the court is satisfied by evidence on oath that he is likely to be able to give material evidence or produce any document or thing likely to be material evidence in the proceedings; and

(b) it is proved on oath, or in such other manner as may be prescribed, that he has been duly served with the

summons, and that a reasonable sum has been paid or tendered to him for costs and expenses; and

PART IV
—cont.

- (c) it appears to the court that there is no just excuse for the failure,

the court may issue a warrant to arrest him and bring him before the court at a time and place specified in the warrant.

(4) If any person attending or brought before a magistrates' court refuses without just excuse to be sworn or give evidence, or to produce any document or thing, the court may commit him to custody until the expiration of such period not exceeding seven days as may be specified in the warrant or until he sooner gives evidence or produces the document or thing.

Evidence

78. Subject to the provisions of any enactment or rule of law authorising the reception of unsworn evidence, evidence given before a magistrates' court shall be given on oath. Evidence on oath.

79. Where a magistrates' court has ordered one person to pay to another any sum of money, and proceedings are taken before that or any other magistrates' court to enforce payment of that sum, then— Proof of non-payment of sum adjudged.

- (a) if the person to whom the sum is ordered to be paid is a clerk of a magistrates' court, a certificate purporting to be signed by the clerk that the sum has not been paid to him; and
- (b) in any other case a document purporting to be a statutory declaration by the person to whom the sum is ordered to be paid that the sum has not been paid to him,

shall be admissible as evidence that the sum has not been paid to him, unless the court requires the clerk or other person to be called as a witness.

80. A statement in writing to the effect that wages of any amount have been paid to a person during any period, purporting to be signed by or on behalf of his employer, shall be evidence of the facts therein stated in any proceedings taken before a magistrates' court— Statement of wages to be evidence.

- (a) for enforcing payment by the person to whom the wages are stated to have been paid of a sum adjudged to be paid by a summary conviction or order; or
- (b) on any application made by or against that person for the making of an order in any matter of bastardy or an order enforceable as an affiliation order, or for the variation, revocation, discharge or revival of such an order.

PART IV
—cont.

Onus of
proving
exceptions,
etc.

81. Where the defendant to an information or complaint relies for his defence on any exception, exemption, proviso, excuse or qualification, whether or not it accompanies the description of the offence or matter of complaint in the enactment creating the offence or on which the complaint is founded, the burden of proving the exception, exemption, proviso, excuse or qualification shall be on him; and this notwithstanding that the information or complaint contains an allegation negating the exception, exemption, proviso, excuse or qualification.

Penalty for
false statement
in declaration
proving
service, etc.

82. If, in any solemn declaration, certificate or other writing made or given for the purpose of its being used in pursuance of the rules as evidence of the service of any document or the handwriting or seal of any person, a person makes a statement that he knows to be false in a material particular, or recklessly makes any statement that is false in a material particular, he shall be liable on summary conviction to imprisonment for a term not exceeding six months or a fine not exceeding one hundred pounds or both.

PART V

APPEAL AND CASE STATED

Right of appeal

Right of
appeal to
quarter
sessions.

83.—(1) A person convicted by a magistrates' court may appeal to a court of quarter sessions—

- (a) if he pleaded guilty, against his sentence;
- (b) if he did not, against the conviction or sentence.

(2) A person sentenced by a magistrates' court for an offence in respect of which a probation order or an order for conditional discharge has been previously made may appeal to a court of quarter sessions against the sentence.

(3) In this section the expression "sentence" includes any order made on conviction by a magistrates' court, not being—

- (a) a probation order or an order for conditional discharge;
- (b) an order for the payment of costs;
- (c) an order under section two of the Protection of Animals Act, 1911 (which enables a court to order the destruction of an animal); or
- (d) an order made in pursuance of any enactment under which the court has no discretion as to the making of the order or its terms.

(4) An appeal shall lie to a court of quarter sessions from any order made by a magistrates' court under the enactments relating to bastardy, or from any refusal by a magistrates' court

to make such an order, or from the revocation, revival, or variation by a magistrates' court of such an order :

PART V
—cont.

Provided that no such appeal shall lie from an order made under section seventy-four of this Act.

Procedure on appeal

84.—(1) An appeal from a magistrates' court to quarter sessions shall be commenced by the appellant's giving notice of appeal, within fourteen days after the day on which the decision of the magistrates' court was given, to the clerk of the magistrates' court and to the other party.

(2) For the purpose of the preceding subsection, the day on which the decision of the magistrates' court is given shall, where the court has adjourned the trial of an information after conviction, be the day on which the court sentences or otherwise deals with the offender.

(3) Where it appears to a court of quarter sessions, on application made in accordance with the following provisions of this section, that any person wishing to appeal to that court from a magistrates' court has failed to give the notice of appeal required by this section within the period of fourteen days prescribed by subsection (1) of this section, the court of quarter sessions may, if it thinks fit, direct that any such notice of appeal previously given by the applicant after the expiration of the said period, or any such notice to be given by him within such further time as may be specified in the direction, shall be treated as if given within the said period.

(4) An application for a direction under the last preceding subsection shall be made in writing and be sent by the applicant to the clerk of the peace ; and, where the court gives any such direction as aforesaid, the clerk of the peace shall give notice of the direction to the applicant and to the clerk of the court against whose decision the appeal is to be brought, and the applicant shall give notice of the direction to the other party to the proceedings.

(5) The powers of a court of quarter sessions under subsection (3) of this section shall be exercised—

(a) if the quarter sessions are for a county, by the chairman or a deputy chairman of the appeal committee of the quarter sessions ;

(b) if the quarter sessions are for a borough, by the recorder or any deputy recorder ;

and may be exercised either within or outside the county or borough for which the quarter sessions are held.

PART V

—cont.

Abandonment
of appeal.

85.—(1) An appellant may abandon an appeal from a magistrates' court to quarter sessions by giving notice in writing, not later than the third day before the day fixed for hearing the appeal, to the clerk of the court against whose decision the appeal is brought; and the clerk shall thereupon give notice of the abandonment to the other party to the appeal and to the clerk of the peace.

(2) Where notice to abandon an appeal has been duly given by the appellant—

- (a) the court against whose decision the appeal was brought may issue process for enforcing that decision, subject to anything already suffered or done under it by the appellant; and
- (b) the said court may, on the application of the other party to the appeal, order the appellant to pay to that party such costs as appear to the court to be just and reasonable in respect of expenses properly incurred by that party in connection with the appeal before notice of the abandonment was given to that party.

(3) Costs ordered to be paid under this section shall be enforceable as a civil debt.

Enforcement
of decision of
quarter
sessions.

86. After the determination by a court of quarter sessions of an appeal from a magistrates' court the decision appealed against as confirmed or varied by the court of quarter sessions, or any decision of the court of quarter sessions substituted for the decision appealed against, may, without prejudice to the powers of the court of quarter sessions to enforce the decision, be enforced—

- (a) by the issue by the court by which the decision appealed against was given of any process that it could have issued if it had decided the case as the court of quarter sessions decided it;
- (b) so far as the nature of any process already issued to enforce the decision appealed against permits, by that process;

and the decision of the court of quarter sessions shall have effect as if it had been made by the magistrates' court against whose decision the appeal is brought.

*Case stated*Statement of
case by
magistrates'
court.

87.—(1) Any person who was a party to any proceeding before a magistrates' court or is aggrieved by the conviction, order, determination or other proceeding of the court may question the proceeding on the ground that it is wrong in law or is in excess of jurisdiction by applying to the justices composing the court to state a case for the opinion of the High Court on the question of law or jurisdiction involved:

Provided that a person shall not make an application under this section in respect of a decision against which he has a right

of appeal to the High Court or which by virtue of any enactment passed after the thirty-first day of December, eighteen hundred and seventy-nine, is final.

PART V
—cont.

(2) An application under the preceding subsection shall be made within fourteen days after the day on which the decision of the magistrates' court was given.

(3) For the purpose of the last preceding subsection, the day on which the decision of the magistrates' court is given shall, where the court has adjourned the trial of an information after conviction, be the day on which the court sentences or otherwise deals with the offender.

(4) On the making of an application under this section in respect of a decision any right of the applicant to appeal against the decision to a court of quarter sessions shall cease.

(5) If the justices are of opinion that an application under this section is frivolous, they may refuse to state a case, and, if the applicant so requires, shall give him a certificate stating that the application has been refused:

Provided that the justices shall not refuse to state a case if the application is made by or under the direction of the Attorney General.

(6) Where justices refuse to state a case, the High Court may, on the application of the person who applied for the case to be stated, make an order of mandamus requiring the justices to state a case.

88. Any conviction, order, determination or other proceeding of a magistrates' court varied by the High Court on an appeal by case stated, and any judgment or order of the High Court on such an appeal, may be enforced as if it were a decision of the magistrates' court from which the appeal was brought.

Effect of
decision of
High Court on
case stated by
magistrates'
court.

Supplemental provisions as to appeal and case stated

89.—(1) Where a person has given notice of appeal to a court of quarter sessions against the decision of a magistrates' court or has applied to a magistrates' court to state a case for the opinion of the High Court, then, if he is in custody, the magistrates' court may release him on his entering into a recognizance, with or without sureties, conditioned—

Bail on appeal
or case stated.

- (a) if he has given notice of appeal, for his appearance at the hearing of the appeal;
- (b) if he has applied for the statement of a case, for his appearance before the magistrates' court within ten days after the judgment of the High Court has been given, unless the determination in respect of which the case is stated is reversed by that judgment.

PART V
—cont.

(2) The preceding subsection shall not apply where the accused has been committed to quarter sessions for sentence under section twenty-eight or twenty-nine of this Act.

(3) Subsection (6) of section thirty-seven of the Criminal Justice Act, 1948 (which relates to the currency of a sentence while a person is admitted to bail by the High Court), shall apply to a person admitted to bail by a magistrates' court under this section pending the hearing of a case stated as it applies to a person admitted to bail by the High Court under that section.

Recognizances
and fees on
case stated.

90. Justices to whom application has been made to state a case for the opinion of the High Court on any proceeding of a magistrates' court shall not be required to state the case until the applicant has entered into a recognizance, with or without sureties, before the magistrates' court, conditioned to prosecute the appeal without delay and to submit to the judgment of the High Court and pay such costs as that Court may award; and the clerk of a magistrates' court shall not be required to deliver the case to the applicant until the applicant has paid him the fees payable for the case and for the recognizances.

PART VI

RECOGNIZANCES

Recognizances to keep the peace or be of good behaviour

Binding over to
keep the peace
or be of good
behaviour.

91.—(1) The power of a magistrates' court on the complaint of any person to adjudge any other person to enter into a recognizance, with or without sureties, to keep the peace or to be of good behaviour towards the complainant shall be exercised by order on complaint.

(2) Where a complaint is made under this section, the power of the court to remand the defendant under subsection (5) of section forty-seven of this Act shall not be subject to the restrictions imposed by subsection (6) of that section.

(3) If any person ordered by a magistrates' court under subsection (1) of this section to enter into a recognizance, with or without sureties, to keep the peace or to be of good behaviour fails to comply with the order, the court may commit him to custody for a period not exceeding six months or until he sooner complies with the order.

Discharge of
recognizance
to keep the
peace or
be of good
behaviour on
complaint
of surety.

92.—(1) On complaint being made to a justice of the peace for any county or borough by a surety to a recognizance to keep the peace or to be of good behaviour entered into before a magistrates' court that the person bound by the recognizance as principal has been, or is about to be, guilty of conduct constituting a breach of the conditions of the recognizance, the justice may, if the complaint alleges that the principal is, or is believed to be, in that county or borough, or if the recognizance was entered into before a magistrates' court for that county or

borough, issue a warrant to arrest the principal and bring him before a magistrates' court for that county or borough or a summons requiring the principal to appear before such a court:

PART VI
—cont.

Provided that the justice shall not issue a warrant unless the complaint is in writing and substantiated on oath.

(2) The magistrates' court before which the principal appears or is brought in pursuance of such a summons or warrant as aforesaid may, unless it adjudges the recognizance to be forfeited, order the recognizance to be discharged and order the principal to enter into a new recognizance, with or without sureties, to keep the peace or to be of good behaviour.

Other provisions

93.—(1) A justice of the peace on issuing a warrant for the arrest of any person may endorse the warrant with a direction that that person shall on arrest be released on his entering into such a recognizance, with or without sureties, conditioned for his appearance before a magistrates' court, as may be specified in the endorsement; and the endorsement shall fix the amounts in which the principal and the sureties, if any, are to be bound.

Warrant
endorsed for
bail.

(2) Where such an endorsement has been made, then, on that person's being taken to a police station on arrest under the warrant, the officer in charge of the police station shall release him on his entering into a recognizance, with or without sureties approved by the officer, in accordance with the endorsement, conditioned for his appearance before a magistrates' court at the time and place named in the recognizance.

94. Where a magistrates' court has committed a person to custody in default of finding sureties, the court may, on application by or on behalf of the person committed, and after hearing fresh evidence, reduce the amount in which it is proposed that any surety should be bound or dispense with any of the sureties or otherwise deal with the case as it thinks just.

Varying or
dispensing with
requirement as
to sureties.

95.—(1) Where a magistrates' court has power to take any recognizance, the court may, instead of taking it, fix the amount in which the principal and his sureties, if any, are to be bound; and thereafter the recognizance may be taken by any such person as may be prescribed.

Postponement
of taking
recognizance.

(2) Where, in pursuance of this section, a recognizance is entered into otherwise than before the court that fixed the amount of it, the same consequences shall follow as if it had been entered into before that court; and references in this or any other Act to the court before which a recognizance was entered into shall be construed accordingly.

(3) Nothing in this section shall enable a magistrates' court to alter the amount of a recognizance fixed by the High Court.

PART VI
—cont.Forfeiture of
recognizance.

96.—(1) Where a recognizance to keep the peace or to be of good behaviour has been entered into before a magistrates' court or any recognizance is conditioned for the appearance of a person before a magistrates' court or for his doing any other thing connected with a proceeding before a magistrates' court, and the recognizance appears to the court to be forfeited, the court may, subject to the next following subsection, declare the recognizance to be forfeited and adjudge the persons bound thereby, whether as principal or sureties, or any of them, to pay the sum in which they are respectively bound.

(2) Where a recognizance is conditioned to keep the peace or to be of good behaviour, the court shall not declare it forfeited except by order made on complaint.

(3) The court which declares the recognizance to be forfeited may, instead of adjudging any person to pay the whole sum in which he is bound, adjudge him to pay part only of the sum or remit the sum.

(4) Payment of any sum adjudged to be paid under this section, including any costs awarded against the defendant, may be enforced, and any such sum shall be applied, as if it were a fine and as if the adjudication were a summary conviction:

Provided that, at any time before the issue of a warrant of commitment to enforce payment of the sum, or before the sale of goods under a warrant of distress to satisfy the sum, the court may reduce or remit the sum absolutely or on such conditions as the court thinks just.

(5) A recognizance such as is mentioned in this section shall not be enforced otherwise than in accordance with this section, and accordingly shall not be transmitted to quarter sessions nor shall its forfeiture be certified to quarter sessions.

Arrest on
failure to
surrender to
bail before
magistrates'
court.

97. Where any person charged with or convicted of an offence has entered into a recognizance conditioned for his appearance before a magistrates' court and in breach of that recognizance fails to appear, the court may, without prejudice to its power to enforce the recognizance, issue a warrant for his arrest.

PART VII

SUPPLEMENTAL

*Constitution and place of sitting of magistrates' courts*Constitution
and place of
sitting of court.

98.—(1) A magistrates' court shall not try an information summarily or hear a complaint except when composed of at least two justices unless the trial or hearing is one that by virtue of any enactment may take place before a single justice.

(2) A magistrates' court shall not hold an inquiry into the means of an offender for the purposes of section seventy of this Act except when composed of at least two justices.

(3) A magistrates' court shall not—

PART VII
—cont.

(a) try summarily an information for an indictable offence or hear a complaint except when sitting in a petty-sessional court-house ;

(b) try an information for an offence that is not indictable or hold an inquiry into the means of an offender for the purposes of section seventy of this Act, or impose imprisonment, except when sitting in a petty-sessional court-house or an occasional court-house.

(4) Subject to the provisions of any enactment to the contrary, where a magistrates' court is required by this section to sit in a petty-sessional or occasional court-house, it shall sit in open court.

(5) A magistrates' court composed of a single justice, or sitting in an occasional court-house, shall not impose imprisonment for a period exceeding fourteen days or order a person to pay more than twenty shillings.

(6) Subject to the provisions of the next following subsection, the justices composing the court before which any proceedings take place shall be present during the whole of the proceedings :

Provided that, if during the course of the proceedings any justice absents himself, he shall cease to act further therein and, if the remaining justices are enough to satisfy the requirements of the preceding provisions of this section, the proceedings may continue before a court composed of those justices.

(7) Where the trial of an information is adjourned after the accused has been convicted and before he is sentenced or otherwise dealt with, the court which sentences or deals with him need not be composed of the same justices as that which convicted him ; but, where among the justices composing the court which sentences or deals with an offender there are any who were not sitting when he was convicted, the court which sentences or deals with the offender shall before doing so make such inquiry into the facts and circumstances of the case as will enable the justices who were not sitting when the offender was convicted to be fully acquainted with those facts and circumstances.

(8) This section shall have effect subject to the provisions of this Act relating to domestic proceedings.

Appearance by counsel or solicitor

99. A party to any proceedings before a magistrates' court may be represented by counsel or solicitor ; and an absent party so represented shall be deemed not to be absent: Appearance
by counsel or
solicitor.

Provided that appearance of a party by counsel or solicitor shall not satisfy any provision in any enactment or any condition of a recognizance expressly requiring his presence.

PART VII
—cont.*Process*Defect in
process.

100.—(1) No objection shall be allowed to any information or complaint, or to any summons or warrant to procure the presence of the defendant, for any defect in it in substance or in form, or for any variance between it and the evidence adduced on behalf of the prosecutor or complainant at the hearing of the information or complaint.

(2) If it appears to a magistrates' court that any variance between a summons or warrant and the evidence adduced on behalf of the prosecutor or complainant is such that the defendant has been misled by the variance, the court shall, on the application of the defendant, adjourn the hearing.

Process valid
notwithstand-
ing death, etc.,
of justice.

101. A warrant or summons issued by a justice of the peace shall not cease to have effect by reason of his death or his ceasing to be a justice.

Warrants.

102.—(1) A warrant of arrest issued by a justice of the peace shall remain in force until it is executed or withdrawn.

(2) A warrant of arrest, warrant of commitment, warrant of distress or search warrant issued by a justice of the peace may be executed anywhere in England and Wales by any person to whom it is directed or by any constable acting within his police area.

(3) The issue or execution of any warrant under this Act for the arrest of a person charged with an offence, or of a search warrant, shall be as effectual on Sunday as on any other day.

(4) A warrant to arrest a person charged with an offence may be executed by a constable notwithstanding that it is not in his possession at the time ; but the warrant shall, on the demand of the person arrested, be shown to him as soon as practicable.

Application of
provisions of
Indictable
Offences
Act, 1848,
relating to
execution of
warrants in
British Islands
outside
England
and Wales.

103. So much of sections twelve to fourteen of the Indictable Offences Act, 1848 (which relate among other things to the execution in Scotland, Ireland, the Isle of Man and the Channel Islands of warrants of arrest for the offences referred to in those sections), as is applicable shall apply to warrants of arrest issued under section one of this Act for offences other than those referred to in the said sections twelve to fourteen, or issued under section fifteen or seventy-seven of this Act, and to warrants of commitment issued under this Act :

Provided that the said sections of the said Act of 1848 shall not apply to warrants issued in bastardy proceedings to arrest a witness.

*Limitation of time*PART VII
—cont.

104. Except as otherwise expressly provided by any enactment, a magistrates' court shall not try an information or hear a complaint unless the information was laid, or the complaint made, within six months from the time when the offence was committed, or the matter of complaint arose : Limitation of time.

Provided that this section shall not restrict any power to try summarily an indictable offence under section nineteen, twenty or twenty-one of this Act, or under the provisions of any enactment not contained in this Act whereby an indictable offence may be tried summarily with the consent of the accused but not otherwise.

Remand

105.—(1) Where a magistrates' court has power to remand any person, then, subject to any enactment modifying that power, the court may— Remand in custody or on bail.

(a) remand him in custody, that is to say, commit him to custody to be brought before the court at the end of the period of remand or at such earlier time as the court may require ; or

(b) remand him on bail, that is to say, take from him a recognizance, with or without sureties, conditioned as provided in subsection (3) of this section,

and may, instead of taking recognizances in accordance with paragraph (b) of this subsection, fix the amount of the recognizances with a view to their being taken subsequently in accordance with section ninety-five of this Act and in the mean time commit him to custody in accordance with paragraph (a) of this subsection.

(2) Where a person is brought before the court after remand, the court may further remand him.

(3) A recognizance on which a person is remanded on bail as aforesaid may be conditioned—

(a) for his appearance before the court at the end of the period of remand ; or

(b) for his appearance at every time and place to which during the course of the proceedings the hearing may be from time to time adjourned ;

and, where the recognizance is conditioned as provided in paragraph (b) of this subsection, the fixing at any time of the time for the next appearance shall be deemed to be a remand ; but nothing in this subsection shall deprive the court of power at any subsequent hearing to remand him afresh.

PART VII
—*cont.*

(4) Subject to the provisions of the next following section, a magistrates' court shall not remand a person for a period exceeding eight clear days :

Provided that—

- (a) if the court remands him on bail, it may remand him for a longer period if he and the other party consent ;
- (b) where the court adjourns a trial under subsection (3) of section fourteen or section twenty-six of this Act, the court may remand him for the period of the adjournment ;
- (c) where a person is charged with an offence triable on indictment that is also triable summarily, then, if the court thinks the case proper to be tried summarily but is not at the time so constituted, and sitting in such a place, as will enable it to proceed with the trial, the court may remand him until the next occasion on which it will be practicable for the court to be so constituted, and to sit in such a place, as aforesaid, notwithstanding that the remand is for a period exceeding eight clear days.

(5) A magistrates' court having power to remand a person in custody may, if the remand is for a period not exceeding three clear days, commit him to the custody of a constable.

**Further
remand.**

106.—(1) If a magistrates' court is satisfied that any person who has been remanded is unable by reason of illness or accident to appear or be brought before the court at the expiration of the period for which he was remanded, the court may, in his absence, remand him for a further time ; and subsection (4) of the last preceding section shall not apply.

(2) Notwithstanding anything in subsection (1) of the last preceding section, the power of a court under the preceding subsection to remand a person on bail for a further time may be exercised by enlarging his recognizance and those of his sureties, if any, to a later time.

(3) Where a person remanded on bail is bound by the recognizance to appear before a magistrates' court at any time, and the court has no power to remand him under subsection (1) of this section, the court may in his absence enlarge the recognizance, and those of his sureties, if any, to a later time ; and the enlargement of the recognizance shall be deemed to be a further remand.

*Restrictions on imprisonment*PART VII
—cont.Restrictions
on the
imposition of
imprison-
ment.

107.—(1) A magistrates' court shall not impose imprisonment for less than five days.

(2) A magistrates' court shall not impose imprisonment on any person under seventeen years old.

(3) Where a magistrates' court imposes imprisonment on a person under twenty-one years old under powers contained in subsection (2) of section seventeen of the Criminal Justice Act, 1948 (which prohibits the imposition of imprisonment on a person under twenty-one years old unless there is no other appropriate method of dealing with him), the court shall state the reason for its opinion that no other method of dealing with him is appropriate, and cause that reason to be specified in the warrant of commitment and to be entered in the register.

(4) Her Majesty may by Order in Council prohibit magistrates' courts from—

(a) sentencing to imprisonment persons under twenty-one years old or such lower age as may be specified in the Order;

(b) committing such persons to prison in default of payment of a sum adjudged to be paid by a summary conviction or for want of sufficient distress to satisfy such a sum;

and any such Order may be limited to persons of one of the sexes:

Provided that no Order in Council shall be made under this subsection until the Secretary of State is satisfied that the methods other than imprisonment available for the treatment of offenders afford to magistrates' courts adequate means of dealing with the persons to whom the Order relates.

(5) A draft of any Order in Council under this section shall be laid before Parliament; and the draft shall not be submitted to Her Majesty in Council unless it has been approved by resolution of each House.

(6) The power to make an Order in Council under this section shall include power to revoke or vary the Order by a subsequent Order in Council.

108.—(1) A magistrates' court imposing imprisonment on any person may order that the term of imprisonment shall commence on the expiration of any other term of imprisonment imposed by that or any other court; but where a magistrates' court imposes two or more terms of imprisonment to run consecutively the aggregate of such terms shall not, subject to the provisions of this section, exceed six months.

Consecutive
terms of
imprison-
ment.

(2) If two or more of the terms imposed by the court are imposed in respect of an indictable offence tried summarily

PART VII
—cont.

under section nineteen of this Act, the aggregate of the terms so imposed and any other terms imposed by the court may exceed six months but shall not, subject to the following provisions of this section, exceed twelve months.

(3) The limitations imposed by the preceding subsections shall not operate to reduce the aggregate of the terms that the court may impose in respect of any offences below the term which the court has power to impose in respect of any one of those offences.

(4) Where a person has been sentenced by a magistrates' court to imprisonment and a fine for the same offence, a period of imprisonment imposed for non-payment of the fine, or for want of sufficient distress to satisfy the fine, shall not be subject to the limitations imposed by the preceding subsections.

(5) For the purposes of this section a term of imprisonment shall be deemed to be imposed in respect of an offence if it is imposed as a sentence or in default of payment of a sum adjudged to be paid by the conviction or for want of sufficient distress to satisfy such a sum.

Detention for short periods

Detention in
police cells,
etc.

109.—(1) A magistrates' court having power to impose imprisonment on any person may instead of doing so order him to be detained for any period not exceeding four days in a place certified by the Secretary of State to be suitable for the purpose.

(2) The Secretary of State may certify under this section any police cells, bridewell or similar place provided by him and, on the application of any other police authority, any such place provided by that authority.

(3) A woman or girl shall not be detained in any such place except under the supervision of women.

(4) The Secretary of State may make regulations for the inspection of places certified by him under this section, for the treatment of persons detained in them and generally for the purpose of carrying this section into effect.

(5) Any expenses incurred in the maintenance of persons detained under this section shall be defrayed out of moneys provided by Parliament.

(6) In this section the expression "police authority" has the meaning assigned to it by section thirty of the Police Pensions Act, 1921; and the expression "maintenance" has the same meaning in relation to a person detained under this section as it has under section fifty-three of the Prison Act, 1952, in relation to a prisoner.

PART VII

—cont.

Detention of
offender for one
day in court-
house or police
station.

110.—(1) A magistrates' court that has power to commit to prison a person convicted of an offence, or would have that power but for section sixty-nine, seventy or seventy-one of this Act, may order him to be detained within the precincts of the court-house or at any police station until such hour, not later than eight o'clock in the evening of the day on which the order is made, as the court may direct, and, if it does so, shall not, where it has power to commit him to prison, exercise that power.

(2) A court shall not make such an order under this section as will deprive the offender of a reasonable opportunity of returning to his abode on the day of the order.

111.—(1) A magistrates' court that has power to commit to prison a person in default of payment of a sum adjudged to be paid by a summary conviction, or would have that power but for section seventy or seventy-one of this Act, may issue a warrant for his detention in a police station, and, if it does so, shall not, where it has power to commit him to prison, exercise that power.

Committal to
custody
overnight at
police station
for non-
payment of
sum adjudged
by conviction.

(2) A warrant under this section, unless the sum adjudged to be paid by the conviction is sooner paid, shall authorise any police constable to arrest the defaulter and take him to a police station and shall require the officer in charge of the station to detain him there until eight o'clock in the morning of the day following that on which he is arrested, or, if he is arrested between midnight and eight o'clock in the morning, until eight o'clock in the morning of the day on which he is arrested:

Provided that the officer may release him at any time within four hours before eight o'clock in the morning if the officer thinks it expedient to do so in order to enable him to go to his work or for any other reason appearing to the officer to be sufficient.

Fees, fines, forfeitures, etc.

112.—(1) Subject to the provisions of this section, the court fees set out in Part I of the Fourth Schedule to this Act, and no others, shall be chargeable by clerks of magistrates' courts; and any enactment providing for the payment of any fees for the payment of which provision is made in the said Part I shall have effect accordingly.

(2) No fee shall be chargeable by a clerk of a magistrates' court in respect of any matter specified in Part II of the said Schedule.

(3) Nothing in this section shall affect the fees chargeable in respect of the matters specified in Part III of the said Schedule.

(4) The Secretary of State may from time to time by order make such variations in Part I of the said Schedule as may seem to him proper.

PART VII
—*cont.*

(5) The power to make an order under the last preceding subsection shall be exercisable by statutory instrument ; and a draft of any such statutory instrument shall be laid before Parliament.

**Remission of
fees.**

113.—(1) A magistrates' court may on the ground of poverty or for other reasonable cause remit in whole or in part any fee payable in proceedings before the court.

(2) A magistrates' court adjudging an offender to pay a fine shall, if the fine does not exceed five shillings, remit all fees payable by the prosecutor and direct all fees already paid by him to be repaid to him, unless in either case there is some special ground for not doing so.

**Disposal of
sums adjudged
to be paid by
conviction**

114.—(1) A clerk of a magistrates' court shall apply moneys received by him on account of a sum adjudged to be paid by a summary conviction as follows:—

- (a) in the first place in payment of any costs adjudged by the conviction to be paid to the prosecutor ;
- (b) in the second place in payment of any damages or compensation so adjudged to be paid to any person ;
- (c) in the third place in repayment to the prosecutor of any court or police fees paid by him ;
- (d) in the fourth place in payment of any court fees payable but not already paid by the prosecutor ;
- (e) in the fifth place in payment of any police fees payable but not already paid by the prosecutor ; and
- (f) the balance to the fund to which, or the person to whom, he is required to pay the sum by section twenty-seven of the Justices of the Peace Act, 1949, or any other enactment relating to the sum.

(2) In this section the expression " police fees " means all fees payable to a constable.

**Disposal of
non-pecuniary
forfeitures.**

115. Subject to any enactment relating to customs or excise, anything other than money forfeited on a conviction by a magistrates' court or the forfeiture of which may be enforced by a magistrates' court shall be sold or otherwise disposed of in such manner as the court may direct ; and the proceeds shall be applied as if they were a fine imposed under the enactment on which the proceedings for the forfeiture are founded.

*Functions of justices and clerks***Acts done by
justices
outside their
local
jurisdiction.**

116.—(1) A justice of the peace for a county may act as a justice for that county in any county or borough adjoining the county for which he is justice.

(2) A justice of the peace for a borough may act as a justice for that borough in the county in which the borough is situated or in any county or borough adjoining the borough for which he is justice.

(3) In this section any reference to a county, except a reference to a justice for a county, shall be construed as a reference to an area comprising the administrative county concerned together with any county borough situated or deemed to be situated in that county.

PART VII
—cont.

117. The justices for a county which surrounds or adjoins any detached part of another county may exercise any jurisdiction, whether exercisable under this or any other Act or at common law, that they could exercise if that part were part of the county for which they are justices.

Jurisdiction
with respect to
detached parts
of counties.

118.—(1) Any reference in this Act to a clerk of any magistrates' court shall be construed as a reference to the clerk to the justices for the petty sessions area for which the court is acting, or was acting at the relevant time.

Clerks to
justices.

(2) Where there is more than one clerk to the justices for any petty sessions area, anything that this Act requires or authorises to be done by or to the clerk to the justices shall or may be done by or to any of the clerks or by or to such of the clerks as the magistrates' courts committee having power over the appointment of clerks to justices for that area generally or in any particular case or cases may direct.

(3) If any person other than the salaried clerk in a petty sessions area appointed under section five of the Justices Clerks Act, 1877, and section nineteen of the Justices of the Peace Act, 1949, acts as clerk to the justices for that area, he shall, subject to the rules, be treated as having acted as deputy to the salaried clerk and shall make a return to the salaried clerk of all matters done before the justices and of all matters that the clerk to the justices is required to register or record.

(4) This section shall not apply to any clerk whose salary is regulated under any Act other than the Justices of the Peace Act, 1949, or to any court the salary of whose clerk is so regulated.

Metropolitan area and stipendiary magistrates

119.—(1) The Administrative County of London shall for the purposes of this Act consist of two counties, namely, the City of London on the one hand, and the County of London, that is to say, the rest of the Administrative County on the other.

Metropolitan
area.

(2) Nothing in this Act shall allow a summons or warrant to be served or executed contrary to section twelve of the Metropolitan Police Act, 1839 (which provides that all summonses and warrants to be issued in any criminal proceedings within the metropolitan police district, or by any magistrate within that district, shall be served and executed by a constable of the metropolitan police force, and by none other).

PART VII
—cont.

(3) The justices of the peace for the City of London shall not exercise any jurisdiction to hear domestic proceedings; and metropolitan stipendiary magistrates and other justices for the County of London may exercise in relation to the City of London any jurisdiction under the enactments mentioned in subsection (1) of section fifty-six of this Act as if the City were included in the County of London.

(4) Her Majesty may by Order in Council provide for the constitution of magistrates' courts for the metropolitan stipendiary court area, or any part of that area, for the purpose of exercising such jurisdiction under any of the enactments mentioned in subsection (1) of section fifty-six of this Act, as may be specified in the Order; and any such Order may provide for the sittings of those courts for that purpose at such places as may be specified in the Order and for the assignment to each such court of such part of that area as may be so specified; and a magistrates' court constituted in accordance with, and sitting at a place specified in, an Order so made shall for that purpose have the same powers as a metropolitan stipendiary magistrate sitting in a metropolitan stipendiary court.

(5) An Order in Council made under the last preceding subsection shall have effect notwithstanding anything in the Metropolitan Police Courts Acts, 1839 and 1840, and may contain such supplemental, incidental and consequential provisions as appear to Her Majesty in Council to be necessary or proper for the purpose of the Order, and may be varied or revoked by a subsequent Order.

(6) For the purposes of subsection (4) of this section the City of London shall be deemed part of the metropolitan stipendiary court area.

(7) The powers of the quarter sessions for the County of London under subsection (3) of section eighty-four of this Act shall be exercised by the paid chairman or a paid deputy chairman of quarter sessions (including any person appointed under section two of the Quarter Sessions (London) Act, 1896, or under section fifty-four of the London County Council (General Powers) Act, 1947, to act temporarily in the office of paid chairman or deputy chairman, or as an additional deputy chairman), and may be exercised either within or outside the County.

(8) Subsection (2) of section one hundred and nine of this Act shall, in its application to the City of London, have effect as if for the references therein to the police authority there were substituted references to the Commissioner of Police for the City of London.

(9) Nothing in section one hundred and twelve of this Act shall affect the fees payable in the metropolitan stipendiary courts or at either of the justice rooms of the City of London.

120.—(1) Nothing in this Act shall affect the powers of the Lord Mayor or any alderman of the City of London, or any person authorised by subsection (2) of section eleven of the Justices of the Peace Act, 1949, to take the place of the Lord Mayor or alderman, to commit any person for trial at the Central Criminal Court notwithstanding that the offence is triable by quarter sessions.

PART VII
—cont.

Justices for the City of London and metropolitan stipendiary magistrates.

(2) For the purposes of the jurisdiction of the metropolitan stipendiary magistrates, the metropolitan stipendiary court area shall be a petty sessions area.

121.—(1) Nothing in this Act requiring a magistrates' court to be composed of two or more justices, or to sit in a petty-sessional court-house or an occasional court-house, or limiting the powers of a magistrates' court composed of a single justice, or when sitting elsewhere than in a petty-sessional court-house, shall apply to—

Jurisdiction of Lord Mayor or alderman of City of London and stipendiary magistrates sitting alone.

- (a) the Lord Mayor or an alderman of the City of London sitting at either of the justice rooms of the City of London ;
- (b) a metropolitan stipendiary magistrate sitting in a metropolitan stipendiary court ;
- (c) any other stipendiary magistrate sitting in a place appointed for the purpose.

(2) Nothing in subsection (2) of section fifty-six or subsection (4) of section one hundred and nineteen of this Act shall prohibit the hearing and determination of any domestic proceedings by a stipendiary magistrate when sitting alone.

(3) In this section references to the Lord Mayor or alderman of the City of London shall be construed as including references to either of the persons authorised by subsection (2) of section eleven of the Justices of the Peace Act, 1949, to take the place of the Lord Mayor or alderman.

Rules

122.—(1) The power to make rules conferred by section fifteen of the Justices of the Peace Act, 1949, shall, without prejudice to the generality of subsection (1) of that section, include power to make provision as to—

Rules of procedure.

- (a) the practice and procedure of justices in exercising functions preliminary or incidental to proceedings before a magistrates' court ;
- (b) the service and execution of process issued by or for the purposes of a magistrates' court, including the service and execution in England and Wales of process issued in other parts of the United Kingdom ;

PART VII
—cont.

- (c) the keeping of records of proceedings before magistrates' courts and the manner in which things done in the course of, or as preliminary or incidental to, any such proceedings, or any proceedings on appeal from a magistrates' court to a court of quarter sessions, may be proved in any legal proceedings;
- (d) the extent to which a justices' clerk may engage in practice as a solicitor or barrister;
- (e) the functions of clerks of assize and clerks of the peace for the purposes of securing the attendance of persons bound over conditionally by examining justices to attend a trial on indictment;
- (f) the furnishing by any person having custody of the depositions of copies thereof, and of copies of the information if it is in writing, to a person committed for trial;
- (g) what magistrates' court shall have jurisdiction to hear any complaint;
- (h) the matters additional to those specified in section forty-five of this Act on complaint for which a magistrates' court shall have power to make an order with the consent of the defendant without hearing evidence;
- (j) any other matters as to which immediately before the coming into force of the said section fifteen provision was or could have been made by virtue of the enactments and parts of enactments repealed by Part II of the Seventh Schedule to the said Act, or by virtue of subsections (2) and (3) of section eight of the Adoption Act, 1950, so far as they relate to magistrates' courts.

(2) Where any Act expressly confers jurisdiction on any magistrates' court to hear a complaint, rules made under paragraph (g) of the preceding subsection shall not take away that jurisdiction, but may extend it to any other magistrates' court.

(3) Any Act passed before the sixteenth day of December, nineteen hundred and forty-nine, in so far as that Act relates to matters about which rules may be made under section fifteen of the Justices of the Peace Act, 1949, shall have effect subject to any rules so made and may be amended or repealed by the rules accordingly:

Provided that nothing in the said section shall authorise the rules to reduce the number of justices required for any purpose by any Act.

*Occasional court-houses*Occasional
court-house.

123.—(1) The justices acting for a petty sessions area not a borough may appoint as an occasional court-house any place that is not a petty-sessional court-house.

(2) A place appointed as an occasional court-house after the commencement of this Act shall not be used as such unless public notice has been given that it has been appointed.

PART VII
— cont.

(3) There may be more than one occasional court-house for each petty sessions area ; and an occasional court-house may be outside the petty sessions area for which it is appointed, and if so shall be deemed to be in that area for the purpose of the jurisdiction of the justices acting for that area.

Interpretation

" Magistrates'
court ".

124.—(1) In this Act the expression " magistrates' court " means any justice or justices of the peace acting under any enactment or by virtue of his or their commission or under the common law.

(2) Except where the contrary is expressed, anything authorised or required by this Act to be done by, to or before the magistrates' court by, to or before which any other thing was done, or is to be done, may be done by, to or before any magistrates' court acting for the same petty sessions area as that court.

125. In this Act—

" Summary "
and
" Indictable "
offence

(a) the expression " summary offence " means an offence which, if committed by an adult, is triable by a magistrates' court (whether or not it is also triable on indictment) except an offence triable by a magistrates' court with the consent of the accused under section nineteen of this Act or section five of the Newspaper Libel and Registration Act, 1881 ;

(b) the expression " indictable offence " means an offence which, if committed by an adult, is triable on indictment (whether or not it is also triable by a magistrates' court) except an offence otherwise triable only by a magistrates' court which, under section twenty-five of this Act or any enactment not contained in this Act, is required to be tried on indictment at the instance of the accused or the prosecutor.

126.—(1) In this Act, unless the context otherwise requires, the following expressions have the meaning hereby assigned to them, that is to say—

Interpretation
of other terms.

" Act " includes local Act ;

" Affiliation order " means an order made under the Bastardy Laws Amendment Act, 1872, adjudging a man to be the putative father of a bastard child and ordering him to pay a sum of money weekly or otherwise to the mother of a bastard child or to any other person who is named in the order ;

PART VII
—cont.

- "City of London" includes the Inner Temple and the Middle Temple ;
- "Clerk of assize" includes clerk of the Central Criminal Court ;
- "Commit to custody" means commit to prison or, where any enactment authorises or requires committal to some other place of detention instead of committal to prison, to that other place ;
- "County", except where the reference is to the City of London or the County of London, means an administrative county exclusive of any borough in which the jurisdiction of county justices is excluded by virtue of subsection (2) of section one hundred and fifty-four of the Municipal Corporations Act, 1882, or subsection (3) of section sixteen of the Justices of the Peace Act, 1949 ;
- "County of London" has the meaning assigned to it by section one hundred and nineteen of this Act ;
- "Domestic proceedings" has the meaning assigned to it by section fifty-six of this Act ;
- "Enactment" includes an enactment contained in a local Act or in any order, regulation or other instrument having effect by virtue of an Act ;
- "Fine" includes any pecuniary penalty or pecuniary forfeiture or pecuniary compensation payable under a conviction ;
- "Guardian" in relation to any person includes anybody who, in the opinion of the magistrates' court or police officer having cognizance of any proceedings in which that person is concerned, has for the time being charge of or control over that person ;
- "Impose imprisonment" means pass a sentence of imprisonment or fix a term of imprisonment for failure to pay any sum of money, or for want of sufficient distress to satisfy any sum of money, or for failure to do or abstain from doing anything required to be done or left undone ;
- "Maintenance order" means an order made under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949, requiring a husband to pay a weekly sum to his wife or to the clerk of a magistrates' court on her behalf ;
- "Metropolitan stipendiary magistrate", "Metropolitan stipendiary court" and "Metropolitan stipendiary court area" mean metropolitan police magistrate, metropolitan police court and metropolitan police court area ;

“Petty sessions area” means any of the following areas, that is to say, a borough having a separate commission of the peace, a county not divided into petty-sessional divisions and a petty-sessional division of a county;

“Prescribed” means prescribed by the rules;

“The Register” means the register of proceedings before a magistrates’ court required by the rules to be kept by the clerk of the court;

“The Rules” means rules made under section fifteen of the Justices of the Peace Act, 1949;

“Sentence” does not include a committal in default of payment of any sum of money, or for want of sufficient distress to satisfy any sum of money, or for failure to do or abstain from doing anything required to be done or left undone;

“Sum enforceable as a civil debt” means—

(a) any sum recoverable summarily as a civil debt which is adjudged to be paid by the order of a magistrates’ court;

(b) any other sum expressed by this or any other Act to be so enforceable.

“Transfer of fine order” has the meaning assigned to it by section seventy-two of this Act.

(2) Except where the contrary is expressed or implied, anything required or authorised by this Act to be done by justices may, where two or more justices are present, be done by one of them on behalf of the others.

(3) Any reference in this Act to a sum adjudged to be paid by a conviction or order of a magistrates’ court shall be construed as including a reference to any costs, damages or compensation adjudged to be paid by the conviction or order of which the amount is ascertained by the conviction or order.

(4) In relation to a borough having a separate commission of the peace in which the jurisdiction of the county justices is not excluded, any reference in this Act to a justice for the borough shall be construed as including a reference to a justice for the county when acting for the borough.

(5) Where the age of any person at any time is material for the purposes of any provision of this Act regulating the powers of a magistrates’ court, his age at the material time shall be deemed to be or to have been that which appears to the court after considering any available evidence to be or to have been his age at that time.

PART VII
—cont.

(6) Except where the context otherwise requires, any reference in this Act to an offence shall be construed as including a reference to an alleged offence; and any reference in this Act to an offence committed, completed or begun anywhere shall be construed as including a reference to an offence alleged to have been committed, completed or begun there.

(7) For the purposes of the provisions of this Act relating to the committal to quarter sessions for sentence of a person summarily convicted of an indictable offence, an offence specified in the First Schedule to the Administration of Justice (Miscellaneous Provisions) Act, 1938, shall be deemed to be triable by quarter sessions notwithstanding that the court to which that person is committed for sentence is not presided over by a legally qualified chairman or a person deputed by him.

(8) References in this Act to an offence punishable on summary conviction with imprisonment shall be construed without regard to any prohibition or restriction imposed by or under this or any other Act on imprisonment of young offenders.

(9) The provisions of this Act authorising a magistrates' court on conviction of an offender to pass a sentence or make an order instead of dealing with him in any other way shall not be construed as taking away any power to order him to pay costs, damages or compensation.

(10) Except where the context otherwise requires, references in this Act to any enactment shall include a reference to that enactment as amended, extended or applied by any other enactment, including this Act.

Miscellaneous

Amendment
and clarification
of certain
enactments
authorizing
trial on
indictment
and summary
trial.

127.—(1) Section eighteen of this Act shall apply to misdemeanours under section thirty-seven of the Malicious Damage Act, 1861.

(2) For the removal of doubt it is hereby declared that an offence under the Witnesses (Public Inquiries) Protection Act, 1892, is not punishable on conviction on indictment except in pursuance of an objection to summary trial under section three of that Act, and that accordingly section eighteen of this Act does not apply to an offence under the said Act of 1892.

Application
of Act to
distress for
rates.

128.—(1) Justices may state a case under this Act when called upon to issue a warrant of distress for a rate.

(2) Subsection (2) of section sixty-seven and section eighty of this Act shall apply to proceedings for the non-payment of a rate as they apply to proceedings for the non-payment of a sum adjudged to be paid by a magistrates' court.

(3) Except as provided in the preceding provisions of this section, the power of justices to issue a warrant of distress for a rate, the form and execution of such a warrant and the committal of persons for want of sufficient distress to satisfy a rate shall not be subject to the provisions of this Act.

PART VII
—cont.

129. Except where the contrary is expressed or implied, references in this Act to justices shall not be construed as references to quarter sessions or any committee thereof.

Application to quarter sessions excluded.

130. The provisions of this Act relating to the constitution, place of sitting and procedure of magistrates' courts shall, in their application to juvenile courts, have effect subject to any provision contained in the rules or any enactment regulating the constitution, place of sitting or procedure of juvenile courts.

Saving for juvenile courts.

131. The enactments mentioned in the Fifth Schedule to this Act shall have effect subject to the amendments specified in that Schedule, being amendments consequential on the provisions of this Act.

Consequential amendments.

132.—(1) The enactments mentioned in the Sixth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Repeal.

(2) Nothing in this repeal shall affect any order or regulation made, process or certificate issued, recognizance entered into or anything done under any enactment repealed by this Act; but any such order, regulation, process, certificate, recognizance or thing shall, so far as it is in force at the commencement of this Act, continue in force, and so far as it could have been made, issued, entered into or done under the corresponding provision of this Act or the rules, have effect as if it had been made, issued, entered into or done under that corresponding provision.

(3) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act or the rules.

(4) The mention of particular matters in this section shall not affect the general application to this Act of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

133.—(1) This Act may be cited as the Magistrates' Courts Act, 1952.

Short title, extent and commencement.

(2) Except so far as provision to the contrary is made in subsection (4) of section seventy and section one hundred and three of this Act, this Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into force on the first day of June, nineteen hundred and fifty-three.

SCHEDULES

Section 19.

FIRST SCHEDULE

INDICTABLE OFFENCES BY ADULTS WHICH MAY BE DEALT WITH
SUMMARILY WITH CONSENT OF ACCUSED

1. Offences under section twenty-seven of the Larceny Act, 1861.
2. Offences under sections sixteen, twenty, twenty-one and fifty-one of the Malicious Damage Act, 1861.
3. Offences under sections twenty and forty-seven of the Offences against the Person Act, 1861.
4. Offences under section twenty of the Telegraph Act, 1868.
5. Offences under paragraph (1) of section thirteen of the Debtors Act, 1869.
6. Offences under the Falsification of Accounts Act, 1875.
7. Offences under section thirteen of the Stamp Duties Management Act, 1891.
8. Offences under sections fifty to fifty-six of the Post Office Act, 1908.
9. Offences under section five of the Perjury Act, 1911, in relation to statements in statutory declarations.
10. Offences under paragraph (a) of subsection (2) of section two of the Forgery Act, 1913, in relation to any document being an authority or request for the payment of money or for the delivery or transfer of goods and chattels, where the amount of the money or the value of the goods or chattels does not exceed twenty pounds, and, under paragraph (a) of section seven of that Act, where the amount of the money or the value of the property in respect of which the offence is committed does not exceed twenty pounds.
11. Offences under the following provisions of the Larceny Act, 1916:—

Sections two, four, five, eight, nine, ten and twelve, paragraph (a) of section thirteen, section fourteen, paragraphs (1) and (2) of section fifteen, section sixteen, paragraphs (1) and (2) of section seventeen, section eighteen, section twenty (where the amount of the money or the value of the property in respect of which the offence is committed does not exceed twenty pounds), paragraph (1) of section thirty-two, subsections (1) and (2) of section thirty-three, and section thirty-five so far as it applies to the aforesaid sections.
12. Offences under section thirty-six of the Criminal Justice Act, 1925.
13. Offences under section eleven of the Agricultural Credits Act, 1928.

14. Misdemeanours under the Coinage Offences Act, 1936.

15. Attempted suicide.

16. Publishing, exhibiting or selling any indecent or obscene book, writing, picture or model, or any other indecent or obscene article or thing whatsoever, whether similar to the things before mentioned or not.

17. Committing an indecent assault upon a person, whether male or female, who is under the age of sixteen.

18. Offences in relation to stamps issued for the purpose of national insurance under the provisions of any enactments as applied to those stamps.

19. Aiding, abetting, counselling or procuring the commission of any offence mentioned in the preceding paragraphs of this Schedule, attempting to commit any such offence and attempting to commit any offence that is both an indictable offence and a summary offence.

20. Any offence consisting in the incitement to commit a summary offence or to commit any offence mentioned in paragraphs 1 to 18 of this Schedule.

1ST SCH.
—cont.

SECOND SCHEDULE

Section 36.

CORPORATIONS

1. A magistrates' court may commit a corporation for trial by an order in writing empowering the prosecutor to prefer a bill of indictment in respect of the offence named in the order.

2. An order under the preceding paragraph shall not prohibit the inclusion in the bill of indictment of counts that under section two of the Administration of Justice (Miscellaneous Provisions) Act, 1933, may be included in the bill in substitution for or in addition to counts charging the offence named in the order.

3. A representative may on behalf of a corporation—

(a) make a statement before examining justices in answer to the charge ;

(b) consent or object to summary trial or claim trial by jury.

4. Where a representative appears, any requirement of this Act that anything shall be done in the presence of the accused, or shall be read or said to the accused, shall be construed as a requirement that that thing shall be done in the presence of the representative or read or said to the representative.

5. Where a representative does not appear, any such requirement, and any requirement that the consent of the accused shall be obtained for summary trial, shall not apply.

6. Subsection (2) of section ten of this Act shall apply to the committal of a corporation for trial as it applies to the committal of a person on bail.

7. The provisions of this Act relating to committal to quarter sessions for sentence shall not apply to a corporation.

8. Subject to the preceding provisions of this Schedule, the provisions of this Act relating to the inquiry into and trial of indictable

2ND SCH.
—cont.

offences and the trial by jury of certain summary offences shall apply to a corporation as they apply to an adult.

9. Where a corporation is charged jointly with an individual with an offence before a magistrates' court, then—

- (a) if the offence is not a summary offence, but one that may be tried summarily with the consent of the accused, the court shall not try either of the accused summarily unless each of them consents to be so tried ;
- (b) if the offence is a summary offence, but one for which an accused has the right to claim trial by a jury, the court shall not try either of the accused summarily if the other exercises that right.

10. Subsection (6) of section thirty-three of the Criminal Justice Act, 1925, shall apply to a representative for the purposes of this Schedule as it applies to a representative for the purposes of that section.

Section 64.

THIRD SCHEDULE

MAXIMUM PERIODS OF IMPRISONMENT IN DEFAULT OF PAYMENT

1. Subject to the following provisions of this Schedule, the periods set out in the second column of the following Table shall be the maximum periods applicable respectively to the amounts set out opposite thereto, being amounts due at the time the imprisonment is imposed.

TABLE

An amount not exceeding ten shillings		Seven days.
An amount exceeding ten shillings but not exceeding one pound		Fourteen days.
An amount exceeding one pound but not exceeding five pounds		One month.
An amount exceeding five pounds but not exceeding twenty pounds		Two months.
An amount exceeding twenty pounds		Three months.

2. Where the amount due at the time imprisonment is imposed is so much of a sum adjudged to be paid by a summary conviction as remains due after part payment, the maximum period applicable to the amount shall be the period applicable to the whole sum reduced by such number of days as bears to the total number of days therein the same proportion as the part paid bears to the whole sum :

Provided that in calculating the reduction required under this paragraph any fraction of a day shall be left out of account and the maximum period shall not be reduced to less than five days.

3. In relation to a sum due under a summary conviction of an offence under an enactment relating to Her Majesty's revenue under the control of the Commissioners of Inland Revenue, the Table set out in paragraph 1 of this Schedule shall have effect as if for the last line thereof there were substituted the following :

An amount exceeding twenty pounds but not exceeding fifty pounds		Three months.
An amount exceeding fifty pounds		Six months.

4. The maximum period applicable to a sum of any amount enforceable as a civil debt shall be six weeks.

FOURTH SCHEDULE

Section 112.

FEES

PART I

FEES TO BE TAKEN BY CLERKS TO JUSTICES

COMMITTAL FOR TRIAL:— £ s. d.

For the performance of all the several duties in every case committed for trial to a court of assize or quarter sessions, without regard to the number of prisoners included in the same charge 1 5 0

(This fee does not cover taking recognizances or giving notice to the accused and his sureties when admitted to bail; nor attending to take the deposition of a witness prevented by sickness or otherwise from appearing in court; nor supplying a copy of depositions. Where the court does not commit, the separate fees for information, &c., are chargeable.)

SUMMARY TRIAL:—

For the performance of all the several duties (including commitment) in respect of any indictable offence dealt with summarily (other than an offence dealt with summarily on the application of the prosecutor in pursuance of s. 18 (1) of this Act or an indictable offence committed by a person under fourteen that is also a summary offence) without regard to the number of persons charged in each case, and whether there is a conviction or not 0 15 0

For the performance of all the several duties in respect of a summary offence (other than an offence first dealt with under s. 18 (1) of this Act as if it were not a summary offence) up to and including the conviction or the dismissal of the charge, in respect of each defendant whether charged jointly or separately ... 0 4 0

For services not covered by the foregoing fees the following fees may be charged:—

APPOINTMENT:—

Of any constable (other than special) 0 1 0
Of special constables, if less than twenty-eight, for each person, to include notice, oath, and certificate... .. 0 1 0

If more than twenty-eight are appointed on one occasion, for attending to summons, swearing in, and making out appointments, and the business thereof, for each day... 2 2 0

ARMY ACT (44 & 45 VICT. C. 58):—

Attestation of recruit (s. 81 (4) (d)) 0 1 0
Descriptive return in relation to deserter (s. 154 (7)) ... 0 2 0
Certificate of civil conviction or acquittal (s. 164) ... 0 3 0
Warrant to provide carriages (s. 112) 0 1 0

4TH SCH.
—cont.

ATTENDANCE:—

£ s. d.

On a justice, to view deserted premises in order to affix notice or to give possession thereof, to view a highway, bridge or nuisance, or to take an examination elsewhere than in court	0	6	8
If required to go more than one mile from the place of holding petty sessions, for each mile after the first (one way)	0	1	0

CASE FOR THE OPINION OF HIGH COURT (s. 87 of this Act):—

Drawing case and copy, when the case does not exceed five folios of 90 words	0	10	0
For every additional folio beyond five	0	1	0
Taking recognizance as required by s. 90 of this Act	0	5	0
Every enlargement or renewal thereof	0	2	6
For certificate of refusal of case	0	2	0

CERTIFICATE:—

Every certificate not otherwise charged	0	2	0
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CIVIL DEBT (not including Rates):—

Summons and copy	0	1	6
Complaint	0	1	0
Order and copy	0	3	0
Oath (each witness)	0	1	0
Summons on complaint for commitment and copy, including hearing	0	3	0
Warrant of distress	0	2	0
Commitment. (See Warrant.)			

COMPLAINT:—

Every complaint not otherwise charged	0	1	0
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CONVICTION:—

For drawing up a conviction, when required, and lodging it with the clerk of the peace (to include all persons convicted on the same charge, except in cases where all persons convicted on the same charge cannot be included in the same conviction)	0	2	6
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COPY:—

Of depositions for prosecutor on the trial, per folio of 90 words	0	0	4
Of depositions for prisoner, per folio of 90 words, not exceeding	0	0	1½
Of any other document, per folio of 72 words	0	0	4

DUPLICATE:—

For the duplicate of any document	{ One-half the original fee.		
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EXAMINATION. (See Information.)

EXHIBIT:—

Each document annexed to or referred to in any affidavit or declaration and marked	0	1	0
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						£	s.	d.	4TH SCH. —cont.
EXPLOSIVES ACT, 1875 (38 & 39 VICT. C. 17):—									
Store licence (s. 15) not exceeding...						0	5	0	
Store licence, renewal (s. 18), not exceeding						0	1	0	
Registering premises (s. 21), not exceeding						0	1	0	
Registering premises, renewal, not exceeding						0	1	0	
EXTRADITION ACT, 1873 (36 & 37 VICT. C. 60) s. 5 :—									
For taking a deposition in pursuance of an order made by the Secretary of State						1	1	0	
Each subsequent deposition taken in pursuance of the same order						0	5	0	
HEARING:—									
When no order is made						0	1	0	
INFORMATION:—									
Each information or examination (including oath)						0	1	0	
LICENCES:—									
For every licence, consent, or authority not otherwise provided for, to include registration when necessary...						0	5	0	
LIST:—									
Every list not otherwise provided for which it is the duty of the clerk to the justices to make or transmit						0	2	6	
NOTICE:—									
Every notice not otherwise provided for						0	1	0	
OATH:—									
Every oath, affirmation, or solemn declaration not other- wise charged						0	1	0	
						(See note at end of table.)			
ORDER:—									
Order, certificate, or record of proceedings in case of deserted premises, or relating to a highway, bridge, or nuisance						0	5	0	
Order as to the removal of a person of unsound mind						0	5	0	
Order in case of fraudulent removal of goods						0	5	0	
Order for payment of allowance to special constables (one order to include all the constables appointed)						0	2	0	
Every order or minute thereof not otherwise charged						0	3	0	
Order as to the affiliation of a bastard or under the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949						0	2	0	
Variation, revocation, or revival of order						0	1	0	
RATE:—									
Enforcement of any rate, to include complaint, summons, and all other proceedings for which separate fees are not provided hereunder						0	2	0	
Order						0	2	0	
Warrant of distress						0	2	0	
Commitment						0	2	0	
If more than one rate is included in the summons, for each rate after the first						0	0	6	
When the form of warrant provided for by s. 3 of the Distress for Rates Act, 1849 (12 & 13 Vict. c. 14), is used, for each name inserted in the schedule over and above eight						0	0	3	

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—cont.

RECOGNIZANCE:—							£	s.	d.
Every recognizance ...	...	...	...	...	...	...	0	2	6
Notice to each person bound ...	...	...	...	...	...	...	0	0	6

SUMMONS:—

Every summons (to include all the names included in the same charge or intended to be summoned as witnesses in the same case for the prosecution or defence if applied for at the same time) ...	...	...	...	...	...	...	0	1	0
Every copy ...	...	...	...	...	...	...	0	0	6
Backing summons for service from outside jurisdiction ...	...	...	...	...	...	...	0	1	0

WARRANT:—

Every warrant of distress when not otherwise provided for ...	...	...	...	...	...	...	0	2	0
To commit after conviction or order in which the conviction or order is set forth ...	...	...	...	...	...	...	0	2	0
Every other warrant ...	...	...	...	...	...	...	0	1	0
Return to warrant or endorsing warrant, including oath ...	...	...	...	...	...	...	0	1	0
Backing warrant for execution from outside jurisdiction ...	...	...	...	...	...	...	0	1	0

NOTE.—Nothing herein contained shall be construed as authorising the demand of any fee for re-swearing any person to any examination, or for any oath, affirmation, or declaration to obtain pay, pension, or allowance from government or friendly society, or charitable fund, or for any declaration relating to lost duplicates of articles pledged where the amount advanced on such articles does not exceed 20s., or in any other case where an Act of Parliament directs that no fee shall be taken.

PART II

MATTERS IN RESPECT OF WHICH NO FEES ARE CHARGEABLE

Any summons, warrant, notice or order issued, given or made under subsections (2) or (3) of section seventy, section seventy-one, seventy-two or one hundred and eleven of this Act or section eleven of the Money Payments (Justices' Procedure) Act, 1935 (25 & 26 Geo. 5. c. 46), or under any rule made for the purposes of those provisions.

PART III

MATTERS TO WHICH PART I DOES NOT APPLY

1. Matters in respect of which fees are authorised to be charged by the Licensing (Consolidation) Act, 1910 (10 Edw. 7. and 1 Geo. 5. c. 24).
2. Billiard licences, under section ten of the Gaming Act, 1845 (8 & 9 Vict. c. 109).
3. Theatre licences, under section six of the Theatres Act, 1843 (6 & 7 Vict. c. 68).
4. The registration of music and dancing licences under section fifty-one of the Public Health Acts Amendment Act, 1890 (53 & 54 Vict. c. 59).
5. Licences under the Cinematograph Act, 1909 (9 Edw. 7. c. 30).
6. Formal investigations into shipping casualties under section four hundred and seventy-nine of the Merchant Shipping Act, 1894 (57 & 58 Vict. c. 60.)
7. Appeals from pilotage authority under section twenty-eight of the Pilotage Act, 1913 (2 & 3 Geo. 5. c. 31).

FIFTH SCHEDULE

Section 131

CONSEQUENTIAL AMENDMENTS

The County Police Act, 1840

In section two, for the words from "an Act passed" to "in detached parts of counties" there shall be substituted the words "section one hundred and seventeen of the Magistrates' Courts Act, 1952".

The Indictable Offences Act, 1848

In section twelve, for the words "indorse (K.) such warrant in manner hereinbefore mentioned" there shall be substituted the words "make an indorsement (K.) on the warrant, signed with his name, authorising the execution of the warrant within the jurisdiction of the justice making the indorsement".

The Summary Jurisdiction Act, 1857

For the words "this Act" wherever they occur in sections six, eight and ten, there shall be substituted the words "The Magistrates' Courts Act, 1952".

The Malicious Damage Act, 1861

In section thirty-seven, for the words from "and being convicted" onwards there shall be substituted the words "punishable on conviction on indictment with imprisonment for a term not exceeding two years or on summary conviction with imprisonment for a term not exceeding three months or a fine not exceeding ten pounds".

The Criminal Law Amendment Act, 1867

In section six, for the words "who is hereby required to preserve" there shall be substituted the words "A clerk of assize, clerk of the peace or other officer to whom a statement taken under section forty-one of the Magistrates' Courts Act, 1952, is sent in pursuance of rules made under section fifteen of the Justices of the Peace Act, 1949, shall preserve".

The Assizes Relief Act, 1889

In section one, in subsection (1), for the words from "where the persons are so bound over" to "quarter sessions, and" there shall be substituted the words "Where a person is under paragraph (a) of subsection (1) of section nine of the Magistrates' Courts Act, 1952, committed for trial to quarter sessions"; and in subsection (2), for the words "so bound over as aforesaid" there shall be substituted the words "bound over to prosecute or attend before quarter sessions".

The Interpretation Act, 1889

In section twenty-seven for the word "prison" in the first place where it occurs and for the words "any prison" there shall be substituted the word "custody", and for the words from "section twenty-two" to "Indictable Offences Act, 1848" there shall be substituted the words "section seven of the Magistrates' Courts Act, 1952".

The Criminal Justice Act, 1925

In section twelve, for the second paragraph of subsection (4) there shall be substituted the following words: "Any statement made by the accused in proceedings before examining justices in answer to the

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charge and taken down in accordance with rules made under section fifteen of the Justices of the Peace Act, 1949, may, whether signed by the accused or not, be given in evidence on his trial without further proof:

Provided that, if the said rules require the statement to be signed by any of the examining justices, and it is proved that any signature to the statement purporting to be that of an examining justice is not his signature, the statement shall not be admissible by virtue of this section ”.

For subsection (6) of the said section twelve there shall be substituted the following subsection:—

“(6) Nothing in this section or the said rules shall prevent the prosecutor in any case from giving in evidence at the trial any admission or confession or other statement of the accused made at any time which is by law admissible as evidence against the accused ”.

In section fourteen, in subsection (4), after the word “ section ” there shall be inserted the words “ or subsection (1) of section ten of the Magistrates’ Courts Act, 1952 ”.

The Road Traffic Act, 1930

For subsection (5) of section ten there shall be substituted the following subsection:—

“(5) Notwithstanding anything in the Magistrates’ Courts Act, 1952, if any person—

(a) is convicted by virtue of section thirty-five of that Act of an offence under this section as having aided, abetted, counselled or procured any person who is employed by him to drive, or is subject to his orders in driving, a motor vehicle on a road to commit an offence under this section; or

(b) is convicted summarily of the offence of inciting to commit an offence under this section,

he shall be liable, in the case of a first conviction, to a fine not exceeding fifty pounds, and in the case of a second or subsequent conviction, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both ”.

The Children and Young Persons Act, 1933

In section fifty-four, after the words “ section seventeen of the Criminal Justice Act, 1948 ” there shall be inserted the words “ or subsections (2) to (6) of section one hundred and seven of the Magistrates’ Courts Act, 1952 ”.

The Summary Jurisdiction (Appeals) Act, 1933

In section three, in subsection (1), for the word “ thereupon ” there shall be substituted the words “ on receipt of any notice of appeal required by rules made under section fifteen of the Justices of the Peace Act, 1949, to be sent by a clerk to justices to the clerk of the peace ”.

In section four, in subsection (2), for the words “ has been so ” there shall be substituted the words “ to which this Act applies has been ”, and in paragraph (c), for the words “ any such recognisance ” there shall be substituted the words “ any recognisance entered into in connection with the appeal ”.

The Money Payments (Justices Procedure) Act, 1935

In section eleven, in subsection (2), for the words "section two of the Summary Jurisdiction Act, 1848" there shall be substituted the words "section fifteen of the Magistrates' Courts Act, 1952".

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—cont.

The Firearms Act, 1937

For subsection (4) of section twenty-three there shall be substituted the following subsection:—

"(4) Where a person who has attained the age of seventeen is charged before a magistrates' court with an offence specified in the First Schedule to the Magistrates' Courts Act, 1952, and is also charged before that court with an offence under subsection (1) or subsection (2) of this section, then, notwithstanding anything in section nineteen of that Act, the court shall not proceed to the summary trial of the first-mentioned offence if the accused is committed for trial in respect of the offence under this section".

The Criminal Justice Act, 1948

In section eighteen, after the words "last foregoing section" in both places where they occur there shall be inserted the words "or subsections (2) to (6) of section one hundred and seven of the Magistrates' Courts Act, 1952".

In section nineteen, after the words "section seventeen of this Act" there shall be inserted the words "or subsections (2) to (6) of section one hundred and seven of the Magistrates' Courts Act, 1952".

In section twenty, in subsection (4), for the words "An offender so committed as aforesaid" there shall be substituted the words "An offender committed by a court of summary jurisdiction to quarter sessions for sentence under subsection (1) of section twenty-eight of the Magistrates' Courts Act, 1952".

In section twenty-nine, in subsection (2), for the words "An offender so committed as aforesaid" there shall be substituted the words "An offender committed by a court of summary jurisdiction to quarter sessions for sentence under section twenty-nine of the Magistrates' Courts Act, 1952"; and in subsection (5) for the words "this section" there shall be substituted the words "section twenty-nine of the Magistrates' Courts Act, 1952".

In section eighty, in subsection (4), after the words "under this Act" there shall be inserted the words "or section one hundred and seven of the Magistrates' Courts Act, 1952".

The Justices of the Peace Act, 1949

In section twenty-seven, in subsection (1), for the words from "paragraphs (a)" to "police fees" there shall be substituted the words "paragraphs (a) to (e) of subsection (1) of section one hundred and fourteen of the Magistrates' Courts Act, 1952".

The Rag Flock and other Filling Materials Act, 1951

In section twenty, for the words "paragraph (5) of section thirty-nine of the Summary Jurisdiction Act, 1879" there shall be substituted the words "section one hundred and fifteen of the Magistrates' Courts Act, 1952".

The Costs in Criminal Cases Act, 1952

In section seventeen, in subsection (3), for the words "section twenty-eight of the Criminal Justice Act, 1948" there shall be substituted the words "section eighteen of the Magistrates' Courts Act, 1952".

Section 132.

SIXTH SCHEDULE
ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
9 Will. 3. c. 35.	The Blasphemy Act, 1697.	In section two the words "upon oath".
6 Anne, c. 41.	The Succession to the Crown Act, 1707.	In section three the words "upon oath".
15 Geo. 2. c. 33.	The Starr and Bent Act, 1741.	In section six the words "upon oath" and from "which oath" to "administer".
19 Geo. 2. c. 21.	The Profane Oaths Act, 1745.	In section four the words "given upon oath".
33 Geo. 3. c. 55.	The Parish Officers Act, 1793.	The words "upon oath".
7 Geo. 4. c. 64.	The Criminal Law Act, 1826.	Sections twelve and thirteen in relation to proceedings before magistrates' courts.
10 Geo. 4. c. 44.	The Metropolitan Police Act, 1829.	Section nine.
3 & 4 Will. 4. c. 90.	The Lighting and Watching Act, 1833.	In section fifty-six the words "upon oath".
2 & 3 Vict. c. 47.	The Metropolitan Police Act, 1839.	Sections seventy to seventy-two.
		In section seventy-seven the words from "it shall be lawful" to "due and".
2 & 3 Vict. c. 71.	The Metropolitan Police Courts Act, 1839.	Sections nineteen to twenty-two.
		Section thirty-one.
		Section thirty-five.
		Section thirty-six so far as it relates to the remand of persons to appear or be brought before a metropolitan stipendiary magistrate.
3 & 4 Vict. c. 84.	The Metropolitan Police Courts Act, 1840.	Section eight.
3 & 4 Vict. c. 88.	The County Police Act, 1840.	Section thirty-three.
3 & 4 Vict. c. 97.	The Railway Regulation Act, 1840.	In section thirteen the words "upon oath".
		In section sixteen the words "upon oath".
5 & 6 Vict. c. 55.	The Railway Regulation Act, 1842.	In section seventeen the words "upon oath".
6 & 7 Vict. c. 40.	The Hosiery Act, 1843.	In section nineteen the words "on oath".
7 & 8 Vict. c. 101.	The Poor Law Amendment Act, 1844.	Section four.
		In section five the words from "and the clerk" onwards.
8 & 9 Vict. c. 10.	The Bastardy Act, 1845.	Section seventy.
10 & 11 Vict. c. 89.	The Town Police Clauses Act, 1847.	Sections four and five.
		Sections seven to ten.
		Sections seventeen to nineteen.

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Vict. c. 42.	The Indictable Offences Act, 1848.	The whole Act, except sections twelve to fifteen, and thirty to thirty-two and Form (K.) in the Schedule. In section thirty, the words from "and nothing" onwards.
11 & 12 Vict. c. 43.	The Summary Jurisdiction Act, 1848.	The whole Act except section thirty.
14 & 15 Vict. c. 49.	The Preliminary Inquiries Act, 1851.	In section five the words from "and on conviction" to "county rate".
14 & 15 Vict. c. 55.	The Criminal Justice Administration Act, 1851.	Section twelve.
16 & 17 Vict. c. 30.	The Criminal Procedure Act, 1853.	In section two the words from "or before any justice" to "place" where that word next occurs and the words from "and upon notice" onwards.
16 & 17 Vict. c. 119.	The Betting Act, 1853.	Section eight.
17 & 18 Vict. c. 38.	The Gaming Houses Act, 1854.	Section seven.
20 & 21 Vict. c. 43.	The Summary Jurisdiction Act, 1857.	Sections two to five. Section nine. Sections thirteen and fourteen.
21 & 22 Vict. c. 73.	The Stipendiary Magistrates Act, 1858.	Section five.
24 & 25 Vict. c. 51.	The Metropolitan Police Act, 1861.	In section three the words from "and the said" onwards.
26 & 27 Vict. c. 77.	The Summary Jurisdiction Act, 1863.	The whole Act.
27 & 28 Vict. c. 55.	The Metropolitan Police Act, 1864.	Section two.
30 & 31 Vict. c. 35.	The Criminal Law Amendment Act, 1867.	Section four. Section six to "shall have taken the same". Section nine.
35 & 36 Vict. c. 65.	The Bastardy Laws Amendment Act, 1872.	In section three the words from "acting for" to "reside" and the words from "and if such application" onwards. In section four the words from the beginning to "before the petty session", the words "and of such costs as may have been incurred in the obtaining of such order" and the words from "and if at any time after" onwards.
36 & 37 Vict. c. 9.	The Bastardy Laws Amendment Act, 1873.	The whole Act.

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Session and Chapter	Short Title	Extent of Repeal
42 & 43 Vict. c. 49.	The Summary Jurisdiction Act, 1879.	The whole Act, except sections two, thirty-one and forty; and in section thirty-one, in subsection (1), paragraphs (ii) and (iv), in paragraph (vii) the words from "and any order" to "jurisdiction" and paragraph (x).
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1882.	Section two hundred and twenty-seven.
47 & 48 Vict. c. 43.	The Summary Jurisdiction Act, 1884.	The whole Act.
50 & 51 Vict. c. 28.	The Merchandise Marks Act, 1887.	In section two, subsection (6).
51 & 52 Vict. c. 41.	The Local Government Act, 1888.	In section forty-two, in subsection (12), the words "and appoint a occasional court-house" and "or any business transacted at such court-house".
52 & 53 Vict. c. 12.	The Assizes Relief Act, 1889.	In section one, in subsection (1), the words from the beginning to "otherwise to direct; and". In section two the words from the beginning to "gaol delivery; and".
58 & 59 Vict. c. 39.	The Summary Jurisdiction (Married Women) Act, 1895.	In section five, paragraph (d).
61 & 62 Vict. c. 7.	The Bail Act, 1898.	The whole Act.
62 & 63 Vict. c. 22.	The Summary Jurisdiction Act, 1899.	The whole Act.
2 Edw. 7. c. 28.	The Licensing Act, 1902.	In section five, paragraph (d) of subsection (2).
4 & 5 Geo. 5. c. 6.	The Affiliation Orders Act, 1914.	Sections one and five.
4 & 5 Geo. 5. c. 58.	The Criminal Justice Administration Act, 1914.	Sections one to six. Sections twelve and thirteen. Section eighteen. Section nineteen so far as it relates to bail granted by a magistrates' court. Sections twenty to twenty-three. Section twenty-five. In section twenty-eight, subsections (1) and (4). Sections twenty-nine to thirty-three. Section thirty-seven. The First Schedule.
10 & 11 Geo. 5. c. 81.	The Administration of Justice Act, 1920.	Section four.
13 & 14 Geo. 5. c. 23.	The Bastardy Act, 1923.	Section one.

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—cont.

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 86.	The Criminal Justice Act, 1925.	In section eleven, subsections (1) and (2) so far as they relate to proceedings before magistrates' courts, and in the said subsection (1) the words from "Provided that" onwards. In section twelve, subsections (1) to (3), the first paragraph of subsection (4) and subsections (5), (7) and (8). In section thirteen, subsections (1), (2) and (5). In section fourteen, subsections (1) and (5). Section twenty-four. Sections twenty-six and twenty-seven. Section twenty-nine. Sections thirty-one and thirty-two. In section thirty-three, subsections (1), (2) and (5). Sections forty-four and forty-five. The Second Schedule.
18 & 19 Geo. 5. c. 43.	The Agricultural Credits Act, 1928.	In section eleven, subsection (2).
19 & 20 Geo. 5. c. 38.	The Bastardy (Witness Process) Act, 1929.	The whole Act.
23 & 24 Geo. 5. c. 12.	The Children and Young Persons Act, 1933.	In section thirty-five, in subsection (1), the words "a court of summary jurisdiction or before" and "acting under the Indictable Offences Act, 1848". In section forty-eight, subsection (4) from the beginning to "offences". Section sixty. In section sixty-two, in subsection (3), the words from "and where" onwards. In section eighty-eight, paragraph (d) of subsection (2). The Third Schedule.
23 & 24 Geo. 5. c. 38.	The Summary Jurisdiction (Appeals) Act, 1933.	In section three, in subsection (1), the words from "it shall not" to "notice of appeal and", and subsections (2) and (3). In section four, subsections (1) and (3) and, in subsection (2), paragraphs (a) and (b) and, in paragraph (c), the words from the beginning to "accordingly" and the words from "and the provisions" onwards.

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Session and Chapter	Short Title	Extent of Repeal
23 & 24 Geo. 5. c. 42.	The Service of Process (Justices) Act, 1933.	The whole Act.
25 & 26 Geo. 5. c. 46.	The Money Payments (Justices Procedure) Act, 1935.	Sections one to eight. Section nine from the beginning to the words "effect and". In section eleven, in subsection (1), paragraph (a), the words "for which the competent court acts or", the words "as the case may be", in both places where they occur, and the words "before that court or". Sections twelve and thirteen. Section fifteen. Section seventy-two from the beginning to "1879".
26 Geo. 5 & 1 Edw. 8. c. 50.	The Public Health (London) Act, 1936.	The whole Act.
1 Edw. 8 & 1 Geo. 6. c. 58.	The Summary Procedure (Domestic Proceedings) Act, 1937.	The whole Act.
1 & 2 Geo. 6. c. 63.	The Administration of Justice (Miscellaneous Provisions) Act, 1938.	Section six. In the Second Schedule, the entries relating to the Summary Jurisdiction Act, 1857, and the Summary Jurisdiction Act, 1879.
8 & 9 Geo. 6. c. 41.	The Family Allowances Act, 1945.	In section four, subsection (4).
11 & 12 Geo. 6. c. 10.	The Emergency Laws (Miscellaneous Provisions) Act, 1947.	In the Second Schedule, paragraphs 5 to 8.
11 & 12 Geo. 6. c. 43.	The Children Act, 1948.	In section twenty-six, subsection (6).
11 & 12 Geo. 6. c. 58.	The Criminal Justice Act, 1948.	In section eleven, in subsection (1), the words from "and section twenty-three" onwards. In section seventeen, subsection (1) from the beginning to the words "age and", in subsection (3), the words "or a court of summary jurisdiction" and the words from "and if the court" onwards, and subsections (4) and (5). In section eighteen, subsection (3). In section twenty, subsection (3), and, in subsection (7), the words "and before a person is committed for sentence under subsection (3) of this section" and the words from "and if the court" onwards.

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—cont.

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 58— <i>cont.</i>	The Criminal Justice Act, 1948— <i>cont.</i>	Sections twenty-four to twenty-six. In section twenty-seven, subsections (2) and (3). Section twenty-eight. In section twenty-nine, subsection (1). Sections thirty-two and thirty-three. Section thirty-six. Section forty. In section forty-two, subsections (2) and (3). Section sixty-seven. The Ninth Schedule so far as it amends any enactment repealed by this Act.
12, 13 & 14 Geo. 6. c. 99.	The Married Women (Maintenance) Act, 1949.	Section four.
12, 13 & 14 Geo. 6. c. 101.	The Justices of the Peace Act, 1949.	In section eleven, in subsection (5), the words "or any jurisdiction to hear and determine domestic proceedings", paragraph (b) and the word "and" immediately preceding it; in subsection (6), the words "and the Summary Procedure (Domestic Proceedings) Act, 1937" and "and the said Act of 1937"; and, in subsection (7), the words from "the expression" to "1937 and". In section fifteen, subsections (4) and (6). In section nineteen, subsection (12). In section twenty-one, subsection (1) from the words "and section four" onwards, and subsections (2), (3) and (6). In section twenty-five, in subsection (6), the words from "to appoint" in the first place where they occur to "or the power".
14 Geo. 6. c. 26	The Adoption Act, 1950	Subsections (2) and (3) of section eight as respects magistrates' courts.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Metropolitan Police Act, 1839	2 & 3 Vict. c. 47.
Metropolitan Police Courts Act, 1839	2 & 3 Vict. c. 71.
Metropolitan Police Courts Act, 1840	3 & 4 Vict. c. 84.
County Police Act, 1840	3 & 4 Vict. c. 88.
Theatres Act, 1843	6 & 7 Vict. c. 68.
Gaming Act, 1845	8 & 9 Vict. c. 109.
Indictable Offences Act, 1848	11 & 12 Vict. c. 42.
Summary Jurisdiction Act, 1848	11 & 12 Vict. c. 43.
Distress for Rates Act, 1849	12 & 13 Vict. c. 14.
Summary Jurisdiction Act, 1857	20 & 21 Vict. c. 43.
Larceny Act, 1861	24 & 25 Vict. c. 96.
Malicious Damage Act, 1861	24 & 25 Vict. c. 97.
Offences against the Person Act, 1861	24 & 25 Vict. c. 100.
Criminal Law Amendment Act, 1867	30 & 31 Vict. c. 35.
Telegraph Act, 1868	31 & 32 Vict. c. 110.
Debtors Act, 1869	32 & 33 Vict. c. 62.
Forfeiture Act, 1870	33 & 34 Vict. c. 23.
Bastardy Laws Amendment Act, 1872	35 & 36 Vict. c. 65.
Extradition Act, 1873	36 & 37 Vict. c. 60.
Explosives Act, 1875	38 & 39 Vict. c. 17.
Falsification of Accounts Act, 1875	38 & 39 Vict. c. 24.
Justices Clerks Act, 1877	40 & 41 Vict. c. 43.
Prosecution of Offences Act, 1879	42 & 43 Vict. c. 22.
Summary Jurisdiction Act, 1879	42 & 43 Vict. c. 49.
Army Act	44 & 45 Vict. c. 58.
Newspaper Libel and Registration Act, 1881	44 & 45 Vict. c. 60.
Municipal Corporations Act, 1882	45 & 46 Vict. c. 50.
Assizes Relief Act, 1889	52 & 53 Vict. c. 12.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Public Bodies Corrupt Practices Act, 1889	52 & 53 Vict. c. 69.
Lunacy Act, 1890	53 & 54 Vict. c. 5.
Public Health Acts Amendment Act, 1890	53 & 54 Vict. c. 59.
Stamp Duties Management Act, 1891	54 & 55 Vict. c. 38.
Witnesses (Public Inquiries) Protection Act, 1892	55 & 56 Vict. c. 64.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Quarter Sessions (London) Act, 1896	59 & 60 Vict. c. 55.
Vagrancy Act, 1898	61 & 62 Vict. c. 39.
Post Office Act, 1908	8 Edw. 7. c. 48.
Cinematograph Act, 1909	9 Edw. 7. c. 30.
Licensing (Consolidation) Act, 1910	10 Edw. 7. & 1 Geo. 5. c. 24.
Perjury Act, 1911	1 & 2 Geo. 5. c. 6.
Protection of Animals Act, 1911	1 & 2 Geo. 5. c. 27.
Pilotage Act, 1913	2 & 3 Geo. 5. c. 31.
Forgery Act, 1913	3 & 4 Geo. 5. c. 27.
Larceny Act, 1916	6 & 7 Geo. 5. c. 50.
Maintenance Orders (Facilities for Enforcement) Act, 1920	10 & 11 Geo. 5. c. 33.
Police Pensions Act, 1921	11 & 12 Geo. 5. c. 31.
Criminal Justice Act, 1925	15 & 16 Geo. 5. c. 86.
Agricultural Credits Act, 1928	18 & 19 Geo. 5. c. 43.
Mental Treatment Act, 1930	20 & 21 Geo. 5. c. 23.
Road Traffic Act, 1930	20 & 21 Geo. 5. c. 43.
Children and Young Persons Act, 1933	23 & 24 Geo. 5. c. 12.
Administration of Justice (Miscellaneous Pro- visions) Act, 1933	23 & 24 Geo. 5. c. 36.

Short Title	Session and Chapter
Summary Jurisdiction (Appeals) Act, 1933 ...	23 & 24 Geo. 5. c. 38.
Money Payments (Justices Procedure) Act, 1935	25 & 26 Geo. 5. c. 46.
Coinage Offences Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 16.
Firearms Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 12.
Administration of Justice (Miscellaneous Provisions) Act, 1938	1 & 2 Geo. 6. c. 63.
Family Allowances Act, 1945	8 & 9 Geo. 6. c. 41.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
London County Council (General Powers) Act, 1947	10 & 11 Geo. 6. c. xlvi.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Consolidation of Enactments (Procedure) Act, 1949	12, 13 & 14 Geo. 6. c. 33.
Marriage Act, 1949... ..	12, 13 & 14 Geo. 6. c. 76.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Adoption Act, 1950	14 Geo. 6. c. 26.
Maintenance Orders Act, 1950	14 Geo. 6. c. 37.
Rag Flock and Other Filling Materials Act, 1951	14 & 15 Geo. 6. c. 63.
Costs in Criminal Cases Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 48.
Prison Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 52.

CHAPTER 56

An Act to provide for carrying into effect Agreements with certain foreign Governments with respect to contracts of insurance and reinsurance made by persons who subsequently became enemies.

[30th October 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Her Majesty may by Order in Council do all such things as appear to her to be necessary for carrying into effect—

- (a) an Agreement between His late Majesty's Government in the United Kingdom and the Government of Finland relating to contracts of insurance and reinsurance, being an Agreement effected by an Exchange of Notes between those Governments on the twenty-eighth day of December, nineteen hundred and forty-nine;

Power of Her Majesty to give effect to certain Agreements relating to insurance contracts.